Chapter 475

TAXATION

ARTICLE I
Hotel Room Rental Tax

ARTICLE II
Allegheny Regional Asset District

ARTICLE III
Tax Assessment Limitation Program

ARTICLE IV
LERTA

ARTICLE V
(Reserved)

ARTICLE VI
Property Tax Relief Program

ARTICLE VII
Homestead and Farmstead Exclusion Programs

ARTICLE VIII
Reassessment

ARTICLE IX
Tax Certification Fees

ARTICLE X
Real Property Tax Millage

ARTICLE XI
Residential Visitability Design Tax Credit Program

ARTICLE XII
Sheriff's Sales

ARTICLE XIII
Volunteer Services Tax Credit Program

[HISTORY: Adopted by Allegheny County as indicated in article histories. Amendments noted where applicable.]

CHARTER REFERENCES

For additional information regarding tax limitations, see Art. II.

For additional information regarding County budgeting and finance policies, see Art. VII.

ADMINISTRATIVE CODE REFERENCES

For additional information regarding County fiscal affairs, see Part 8.

ARTICLE I
Hotel Room Rental Tax
[Adopted by the Board of Commissioners 1-10-1991]

§ 475-1. Title.

This article shall be known and may be cited as the "Hotel Room Rental Tax Ordinance of Allegheny County."

§ 475-2. Definitions.

The following words and phrases when used in this article shall have, unless the context clearly indicates otherwise, the meanings ascribed to them in this section:

BOOKING AGENT**[Added 3-22-2016 by Ord. No. 04-16]** —

A. Any company, person, or other entity that:

(1) Is in the business of facilitating, making or processing hotel reservations on behalf of prospective patrons and/or hotels or operators; or

(2) Is paid a fee or otherwise derives any type of compensation through facilitating, making or booking hotel reservations by one or more patrons, regardless of whether such fee or compensation is paid by the hotel, operator, patron, or other entity or collects payments for hotel reservations or accommodations on behalf of or for a patron, hotel or operator, and regardless of whether a fee or other compensation is paid for making the reservations for accommodations. Merely publishing an advertisement for accommodations does not make the publisher a booking agent.

B. The term "booking agent" shall include, but not be limited to:

(1) Online travel booking sites which are involved in the process of listing vacant lodgings to patrons, booking reservations on behalf of patrons, operators, or any other entity, and handling any aspect of the resulting financial transaction; and/or

(2) A hosting or other online site that provides a means through which an operator, hotel, or agent for an operator or hotel may accept reservations for hotel occupancy.

CONSIDERATION — Receipts, fees, charges, rentals, leases, cash, credits, property of any kind or nature, or other payment received by operators in exchange for or in consideration of the use or occupancy by a transient of a room or rooms in a hotel for any temporary period.

CONVENTION CENTER or EXHIBITION HALL — A building or series of buildings not used for the retail sale of merchandise or part of any shopping center, mall or other retail center together with any land appurtenant thereto, a major function of which is to house meetings, exhibitions, shows, conventions, assemblies, convocations and similar gatherings; provided that one of the aforesaid buildings shall contain a minimum of 75,000 gross square feet of exhibition space for shows and conventions.

COUNTY — County of Allegheny.

HOTEL — A hotel, motel, inn, guest house or other building located within the taxing jurisdiction which holds itself out by any means including advertising, license, registration with any innkeeper's group, convention listing association, travel publication or similar association or with any government agency as being available to provide overnight lodging or use of facility space for consideration to persons seeking temporary accommodation; any place which advertises to the public at large or any segment thereof that it will provide beds, sanitary facilities or other space for a temporary period to members of the public at large; any place recognized as a hostelry; provided, that portions of such facility which are devoted to persons who have established permanent residence shall not be included in this definition.

MUNICIPALITY — A township, borough or a home rule municipality which was formerly a township or a borough.

OCCUPANCY — The use or possession or the right to use or possession by any person other than a permanent resident of any room in a hotel for any purpose or the right to the use or possession of the furnishings or to the services accompanying the use and possession of the room.

OPERATOR — Any individual, partnership, nonprofit or profit-making association or corporation or other person or group of persons who maintain, operate, manage, own, have custody of, or otherwise possess the right to rent or lease overnight accommodations in any hotel to the public for consideration.

OPERATING DEFICIT — The excess of expenses over receipts from the operation and management of a convention center or exhibition hall.

PATRON — Any person who pays the consideration for the occupancy of a room or rooms in a hotel.

PERMANENT RESIDENT — Any person who has occupied or has the right to occupy any room or rooms in a hotel as a patron or otherwise for a period exceeding 30 consecutive days.

RECOGNIZED TOURIST PROMOTION AGENCY — The nonprofit corporation, organization, association or agency which is and has been engaged in planning and promoting programs designed to stimulate and increase the volume of tourist, visitor and vacation business within counties serviced by such agencies as that term is defined in the Act of April 28, 1961 (P.L. 111, No. 50), known as the "Tourist Promotion Law," and which particular nonprofit corporation, organization, association or agency heretofore has been recognized by the Department of Commerce, all in accordance with the terms of said Tourist Promotion Law.

REGIONAL TOURIST PROMOTION ACTIVITIES — Services, activities, facilities and events which result in a significant number of nonresidents visiting the County for recreational, cultural or educational purposes.

ROOM — A space in a hotel set aside for use and occupancy by patrons, or otherwise, for consideration, having at least one bed or other sleeping accommodation provided therein.

TEMPORARY — A period of time not exceeding 30 consecutive days.

TRANSACTION — The activity involving the obtaining by a transient or patron of the use of occupancy of a hotel room from which consideration emanates to the operator under an express or an implied contract.

TRANSIENT — Any individual who obtains accommodation in any hotel for himself by means of registering at the facility for the temporary occupancy of any room for the personal use of that individual by paying to the operator of the facility a fee in consideration therefor.

§ 475-3. Tax imposed.

A tax not to exceed 5% is hereby imposed on the consideration received by each operator of a hotel within the County from each transaction of renting a room or rooms to accommodate transients.

§ 475-4. Collection of tax.

A. The operator of every hotel within the County shall collect the tax imposed under this article from the patron or patrons of every room or rooms rented. The operator shall then pay over the tax collected to the County in accordance with rules and regulations concerning the collection of the tax established by the County's Treasurer.

B. A booking agent may, or if required by applicable state law, shall collect and remit the tax on behalf of an operator. An operator shall not be responsible for collecting and remitting the Hotel Room Rental Tax on any transaction for which it has received confirmation that the booking agent has collected and remitted the tax. **[Added 3-22-2016 by Ord. No. 04-16]**

§ 475-5. Collection of unpaid taxes.

All taxes due and unpaid under this article shall be recoverable by the County in accordance with rules and regulations established by the County's Treasurer.

§ 475-6. Creation of fund and distribution of tax revenues. [Amended 3-22-2016 by Ord. No. 04-16]

The County Treasurer shall collect the tax imposed under this article from the operator or booking agent and shall deposit the revenues received from the tax in a special fund. The Board of Commissioners of the County shall authorize distributions of the tax revenues from the special fund in accordance with § 4(b.1), Act 182 of 1990, 16 P.S. § 1770.12, Subsection (b).

§ 475-7. Violations and penalties.

Any person violating any of the provisions of this article shall be subject to the following penalties:

A. Upon conviction in a summary proceeding, a fine not in excess of $100 to be paid to the use of the County with costs of prosecution, or to undergo imprisonment in the County jail for not more than 30 days, or both.

B. Each violation shall constitute a separate offense subject to the penalties outlined above.

§ 475-8. Regulations.

A. Regulation 101: Exempt Organizations.

(1) In addition to those occupants exempt by statute and ordinance, the following occupants are exempt:

(a) Ambassadors, ministers and consular officers of foreign governments.

[1] Ambassadors, ministers and other diplomatic representatives of foreign governments properly accredited by the United States are exempt from tax upon the occupancy of rooms. This exemption does not apply to consular officers or to officers of foreign governments other than those herein above specified, unless such exemption arises from treaties or reciprocal agreements existing between such foreign governments and the United States.

[2] A person claiming exemption from the tax under this regulation should submit written proof that he is properly accredited by the United States. Consular officers and officials of foreign governments should submit written proof of the treaty or agreement under which similar exemption is granted by their country to consular officers and officials of the United States together with proof that such treaty or reciprocal agreement is presently in effect and that they are an officer or official

entitled to prerogatives thereunder. If exemption has already been accorded under the sales and use tax portion of the Tax Reform Code of 1971, the numbered identification card, issued by the Commonwealth of Pennsylvania, is valid for hotel room rental tax purposes. This card must be shown by the exempt occupant to the hotel operator whenever a claim for exemption is made.

(b) Occupancy of hotel rooms by the United States government. Occupancy of rooms by the government of the United States, or its agencies, or by an employee or representative of the government of the United State or its agencies, when such occupancy is solely for official purposes and the rent is paid by the government of the United States or its agencies, is exempt from tax. Members of the Armed Forces are exempt from tax only if they are acting as authorized representatives of the government of the United States or its agencies and such rent is paid by the government of the United States or its agencies.

(c) Occupancy of hotel rooms by other exempt facilities.

[1] Occupancy of rooms, the charges for which are billed to and paid by the following organizations are exempt from tax:

[a] Federal credit unions organized under the provisions of the Federal Credit Unit Act, Act of June 26, 1934, as amended by P.L. 96-385, dated September 22, 1959 (12 USC § 1751 et seq.).

[b] Pennsylvania credit unions formed and incorporated under provisions of the Credit Union Act, Act of September 20, 1961, P.L. 1548 (15 P.S. § 1230 et seq.).

[c] Cooperative agricultural associations required by pay corporate net income tax under the provisions of the Cooperative Agricultural Association Corporate Net Income Tax Act, Act of May 23, 1945, P.L. 893 (72 P.S. § 3420-21 et seq.).

[d] Electric cooperative corporations formed under the Electric Cooperative Corporation Act, Act of June 21, 1937, P.L. 1969 (15 P.S. § 12401 et seq.).

[2] Charges paid by employees or other agents of these organizations are subject to the tax even though the employee or agent is reimbursed by the exempt organization.

(d) Occupancy of hotel rooms by the Commonwealth of Pennsylvania.

[1] Occupancy of rooms by the Commonwealth of Pennsylvania or its agencies, or by an employee or representative of the Commonwealth or its agencies, when such occupancy is solely for official purposes, and the rent is paid by the Commonwealth of Pennsylvania or its agencies is exempt from tax.

[2] This subsection shall not be construed to grant an exemption to any local government be it a county or municipality, whose occupancy shall be subject to the tax.

(2) Others not exempt.

(a) No person or entity other than those referred to by the preceding subsections of this regulation are exempt from the hotel room rental tax.

(b) Religious organizations, charities, educational institutions, etc., are required to pay tax upon occupancy of hotel rooms.

B. Regulation 102: Definitions for Purposes of Ordinance.

CONSIDERATION — In determining what was the consideration paid for the occupancy of the room, services and accommodations which were available to the general public as well as to the hotel occupants or residents are not deemed to accompany the use or possession of a hotel room and the charges made for such services and accommodations are not considered part of the consideration so long as such charges are separately stated and itemized. Charges for services or facilities even though offered for the exclusive use of hotel occupants are not deemed to accompany the use or possession of the hotel room or rooms so long as said charges are separately stated and itemized. However, a lump sum is presumed to be rent, even though the lump sum may include charges for services and accommodations which if separately stated and itemized would not be considered part of the rent: Examples:

(1) An individual occupies a room. While in the hotel, he has two meals in the hotel restaurant which he charges to his hotel bill. The charges are separately stated for the meals and are available to the general public who would wish to eat in the restaurant. The tax is imposed only upon the charge for the room.

(2) The hotel has a health club inside the hotel facility. There is a daily charge of $5 for the use of the hotel health club. Only guests of the hotel are allowed to use the health club. The daily charge for use of the health club is itemized separately on the hotel bill for each day that a guest uses the health club. The charge for the health club is not part of the consideration on which the hotel occupancy tax is based.

(3) A guest of the hotel receives a free breakfast for each day that he stays at the hotel. There is no separate itemization of the breakfast on his bill and it is included in a lump sum that he is charged for occupancy of the room. The entire charge for the occupancy from the room is subject to the tax.

HOTEL —

(1) An establishment which has accommodations available to the general public as sleeping quarters for period less than 30 days is a hotel within the meaning of this definition even though the establishment may have other accommodations which are used for purposes other than sleeping quarters, and even though the establishment may have other sleeping quarters which are available only for periods of 30 days or more.

(2) A private organization or institution which in the ordinary courses of its activities, provides sleeping accommodations for persons directly associated with it, is not a hotel. Where, however, such an organization or institution offers or makes available sleeping accommodations to the general public for periods less than 30 days, the organization or institution is considered to be operating a hotel with respect to all occupants. Examples:

(a) An apartment-hotel which rents certain apartments or rooms for occupancy on a week-to-week basis (or for other periods less than 30 days) is a hotel, even though it has other apartments or rooms leased only on a month-to-month basis (or for other periods of 30 days or more). For the purposes of registration, the entire establishment is considered a hotel.

(b) A single building which contains both rooms used as sleeping accommodations and rooms used for other purposes may be a hotel. Thus, where the lower floor of the building is used for rental to commercial establishments, and the upper floors are used for rental of sleeping accommodations for the public for periods of less than 30 days, the building is a hotel for tax purposes.

(c) A hospital, nursing home, convalescent home, mental institution or other institution dedicated to the care and treatment of the sick under medical supervision is not a hotel even though it provides sleeping accommodations for patients, doctors, nurses, employees and other persons associated with the institution. Similarly, where a private business provides sleeping accommodations for its employees, it is not a hotel. Where, however, an organization or institution provides accommodations for the general public, (as, for example, the providing of sleeping accommodations by the YMCA or a health resort or spa) for periods of less than 30 days, it is operating a hotel.

(d) A school, college, university, convent, monastery or other educational or religious institution, which provides sleeping accommodations for the use of persons who are participating in educational or religious activities is not a hotel. For example, where a university provides sleeping accommodations to person who are attending a conference of convention sponsored by the institution, it is not a hotel. A public summer camp conducted by an organization enumerated above wherein the activity of such organization is carried on as an integral part of the camp life is not a hotel.

(e) A private club which restricts the use of its sleeping accommodations to its own employees and members is not considered to be a hotel within the meaning of the hotel occupancy tax. All charges for any occupancies must be billed to club members for the organization to retain its exempt status. Where, however, a club permits its sleeping accommodations to be used by nonmembers, and the billing for such occupancy is made to and paid by nonmembers, the club is considered to be a hotel and must collect tax with respect to all occupancies (other than permanent residence), including occupancies by its membership.

PERMANENT RESIDENT — Under the article, a permanent resident is a person who has occupied or has the right of occupancy of any room or rooms in a hotel as a patron or otherwise for a period exceeding 30 days. Therefore, the following applies to the definition of a permanent resident.

(1) After a person has occupied or had the right to occupy for 30 consecutive days, he is no longer an occupant who is subject to the hotel occupancy tax. His status as a permanent resident is effective for the rental period during which, or at the expiration of which, the 30 consecutive days or occupancy is completed, and continues thereafter so long as his occupancy remains continuous and uninterrupted. Thus, if a person completes his thirtieth day of consecutive occupancy during, or at the expiration of, of a particular rental period, he is a permanent resident for the entire rental period (even though during a part of the period he has not yet established his status as a permanent resident; however, as to any rental period prior to the particular rental period during or at the expiration of which he completed his thirtieth day. As to such prior rental periods, he was and remains an occupant subject to the hotel occupancy tax. [See example D(1) hereinafter.]

(2) A "rental period" for the purposes of these regulations is a period of time during which, under and subject to the terms of the legally enforceable contract, an occupant has a continuous right to occupy a room or rooms in a hotel and is legally bound to pay rent therefore. A mere statement of intention to occupy, or to permit occupancy, on the part of an occupant or hotel operator, or both, does not create a rental period unless the period in question is the subject of a legally enforceable contract.

(3) The occupancy or right of occupancy must be for 30 consecutive days. A person who merely has the right to use a room on intermittent days of the week or month cannot become a permanent

resident, even though he cumulatively occupies for more than 30 days.

(4) The status of a permanent resident only continues so long as the occupancy or right of occupancy continues uninterrupted. A continuing occupancy loses his status as a permanent resident and, with respect to his next occupancy, does not resume his status as a permanent resident unless and until he again completes 30 consecutive days of occupancy. A transfer from one hotel to another (even though both hotels are owned by the same operator) is a break in occupancy. A mere change of rooms, however, in the same hotel is not a break in occupancy. Examples:

(a) An individual occupies a room on a week-to-week contract. At the end of the first four weekly rental periods he is an occupant subject to the tax and not a permanent resident, since he has not completed 30 consecutive days of occupancy during or at the second day of the fifth week, he completes 30 consecutive days and becomes a permanent resident. He is a permanent resident and not an occupant subject to the tax as of the entire fifth week and for each week thereafter during which he continues having uninterrupted right of occupancy. As to the first four weeks, however, he was and is an occupant subject to the tax.

(b) An individual occupies a room on a month-to-month contract. So long as the first monthly rental period is not the month of February, at the end of the first monthly rental period, he is a permanent resident and this status is applicable to the first month, and to every month thereafter during which he continues to have an uninterrupted right of occupancy. Therefore, he is never an occupant subject to the hotel occupancy tax.

(c) A student takes a room on a week-to-week basis in a rooming house. The student tells his landlady he intends to keep the room for a full semester. The student, however, has no legally enforceable right to do so and his landlady has no legally enforceable right to force him to rent the room for the entire semester. He, therefore, occupies on a weekly rental period. He is a permanent resident as of the fifth week. [See example D(1), above.] At the end of the semester, the student returns to his family's home and although he tells his landlady he wishes to resume his occupancy when he returns to school, the student pays no rent for the interim period and has no right to occupy the room during that period. Since there is a break in the student's occupancy, the student has lost his status as a permanent resident and upon his resumption of occupancy (on the same rental period basis) he will again be considered an occupant for the first four weekly rental periods.

PERSON — Includes any natural person, firm, partnership, association, corporation, fiduciary or other entity. Whenever used in any provision of this article, or regulations relative thereto, which prescribes or imposes a fine or imprisonment or both, the term "person" as applied to firm, partnership or association shall include the members thereof. A firm, partnership, association or corporation may be subjected as an entity to the payment of a fine.

ROOM — The entire area rented by an occupancy who is renting the area, inter alia for sleeping accommodations. Example: An individual rents a three-room suite in a hotel at the cost of $150 per day for the entire suite. Only one of the rooms in the suite has sleeping accommodations in it. The tax will be imposed upon the entire $150 per day charge.

C. Regulation 103: Registration. Within 30 days after the effective date of the hotel occupancy tax[1] or within 30 days after commencing business, whichever is later, each operator of any hotel shall register

1. Editor's Note: The hotel room occupancy tax went into effect 1-1-1978.

said hotel with the County Treasurer by completing the registration form provided by the Treasurer, an example of which is found on page i of the Appendix of these regulations.[2] The operator of said hotel shall obtain from the County Treasurer a certificate evidencing his authority to collect the occupancy tax and said certificate shall at all times be posted in a conspicuous place on the premises.

D. Regulation 104: Returns of Tax Collected and Remittance of Tax.

(1) Monthly returns.

(a) Monthly returns are required where a hotel's hotel occupancy tax liability for the third calendar quarter of the preceding year amounted to $400 or more. Only those establishments whose total room units are equal to or greater than 15 room units will be subject to monthly return. Where monthly returns are filed, no quarterly returns are necessary.

(b) Due dates for monthly returns are as follows:

Month	Due Dates	Month	Due Dates
January	February 20	July	August 20
February	March 20	August	September 20
March	April 20	September	October 20
April	May 20	October	November 20
May	June 20	November	December 20
June	July 20	December	January 20

(2) Quarterly returns. Hotel operators who qualify under the conditions set forth in Subsection D(1) to file only quarterly returns shall file said quarterly returns as follows:

Quarter Ending	Due Dates
March 31	April 20
June 30	July 20
September 30	October 20
December 31	January 20

(3) Fee. Every hotel operator shall remit with each return filed, be it a monthly return or a quarterly return, the amount of tax shown to be due and owning on said return.

E. Regulation 105: Failure to Collect and Report Tax; Determination of Tax by County Treasurer. If any hotel operator shall fail or refuse to collect the hotel occupancy tax or to make, within the time provided, under these regulations any report and remittance of said tax or any portion thereof required by this article or the regulations relative thereto (§ 155-8), the County Treasurer shall proceed in such manner as he may deem best to obtain facts and information on which to base his estimate of the tax due. As soon as the County Treasurer shall procedure such tax and information as he is able to obtain upon which to base the assessment of any tax imposed by this article and payable by any hotel operator who has failed or refused to collect the same and to make such report and remittance, the

2. **Editor's Note: The Appendix is included at the end of this chapter.**

County Treasurer shall proceed to determine and assess against such operator the tax and penalties provided for by the ordinance as well as lawfully interest. In the event such determination is made, the County Treasurer shall give a notice of the amount so assessed by serving it personally or by depositing it in the United States Mail, postage prepaid, addressed to the operator so assessed at his last known place of business. Such operator may within 10 days after the serving or mailing of said notice make application in writing to the County Treasurer for a hearing on the amount assessed. If application by the operator for a hearing is not made within the time prescribed, the tax, interest and penalties, if any, determined by the County Treasurer shall become final and conclusive and immediately due and payable. If such application is made, the Treasurer shall give not less than 5 days written notice in the manner prescribed herein to the operator to show cause at the time and place fixed in said notice why said amount specified therein should not be fixed for such tax, interest and penalties. At such hearing, the operator may appear and offer evidence why such specified tax, interest and penalties should not be so fixed. After such hearing, the Treasurer shall determine the proper tax to be remitted and shall thereafter give written notice to the person in the manner proscribed herein of such determination and the amount of such tax, interest and penalties. The amount determined to be due shall be payable after 30 days unless an appeal is taken as provided for in Subsection F (Regulation 106).

F. Regulation 106: Appeal. Any hotel operator aggrieved by any decision by the County Treasurer with respect to the amount of such tax, interest and penalties, if any, may appeal to the Court of Common Pleas by filing a notice of appeal with the County Treasurer within 30 days of the serving or mailing of the determination of tax due.

G. Regulation 107: Records. **[Amended 3-22-2016 by Ord. No. 04-16]**

(1) It is presumed that all rooms are subject to the tax until the contrary is established by accurate records from the operator. The burden of proving that the rent or occupancy received is not taxable is upon the operator and the operator must demonstrate same through accurate records. In any case where a hotel operator fails to maintain adequate records as required under this regulation, any room for which there is not adequate records shall be deemed to have been occupied for the entire period for which the supporting records are lacking.

(2) It shall be the duty of every operator liable for the collection and payment to the County of any tax imposed by this article to keep and preserve, for a period of three years, all records as may be necessary to determine the amount of tax which the operator was liable to collect and pay to the County. Said records shall be maintained at the place of business where the subject rooms were rented. Said records shall include, but not be limited to, folios; lease agreements; general ledgers; night auditor and maid reports; traffic summaries; source of business reports; and any other documents which support room revenues and exemptions. Said records shall be filed in a manner that allows ready access by an authorized agent of the County, who shall have the right to inspect same at all times.

(3) In all instances where a hotel operator claims an exemption pursuant to Subsection A (Regulation 101) or the definition of "permanent resident" in subsections of these regulations, said operator shall maintain among his records folios; lease agreement; vouchers and specifically, in the case of Subsection A (Regulation 101), relating to exemptions, copies of I.D. cards or other records indicating the exempt occupant's job number, employer, place of employment or other identifying information. The aforementioned records shall be filed in a manner that allows ready access by an authorized agent of the County.

(4) Upon the County Treasurer's request, any booking agent shall provide a list of all operators in

the County that have listed hotels with it, including, but not limited to, the hotel's address, phone number, email address, the operator's contact information, and any other requested information.

(5) Any booking agent that lists one or more hotels in the County and that does not collect the tax on behalf of all the operators of such hotels shall provide the County quarterly, within 30 days of the end of the calendar quarter, a list of all hotels in the County that it listed the prior calendar year but for which it did not collect and remit, along with each operator's address, phone number, email address, and any other requested information.

(6) Any booking agent that lists one or more hotels in the County: shall, at the time any operator first lists a hotel in the County with it, notify the operator of the operator's tax obligations to the County; and shall annually provide all operators of one or more hotels in the County with a reminder of their tax obligations to the County. In both cases, the booking agent shall use language provided or approved by the County Treasurer.

H. Regulation 108: Refunds.

(1) Whenever the amount of any tax, interest or penalty has been overpaid, paid more than once, or erroneously or illegally collected or received by the County under §§ 151-1 through 151-7 of this article, or regulations relative thereto, it may be refunded as provided in Subsections H(1) and (2) of this regulation; provided a verified written claim therefor stating the specific ground upon which the claim is founded, is filed with the County Treasurer within three years of date of payment. The claim is found on page ii of the Appendix of these rules and regulations.[3]

(2) Any operator may claim a refund when it is established in the manner prescribed by the Treasurer, that the person from whom the tax has been collected was not an occupant subject to the tax; provided, however, that a refund shall not be allowed unless the amount of the tax collected has either been refunded to the guest or credited to rent subsequently payable to the operator.

(3) No refund shall be paid under the provisions of the section unless claimant establishes his right thereto by written records showing entitlement thereto.

I. Regulation 109: Actions to Collect. Any tax required to be paid by an occupant under the provisions of this article shall be deemed a debt owed by the occupant to the County. Any such tax collected by an operator which has not been paid to the County shall be deemed a debt owed by the operator to the County. Any person owing money to the County by the provisions of this article shall be liable to an action brought under the name of the County for the recovery of such amount.

J. Regulation 110: Bad Debt Deductions. Bad debts, guests leaving without payment of charges or otherwise uncollectible room charges may be deducted from gross rental to arrive at taxable rent of accrual base operators as provided:

(1) The amount of this deduction is shown on Line 2 of the return filed at the appropriate time as provided for in Subsection J(2). (See page iii of the Appendix.[4])

(2) The uncollected account is at least 120 days old.

(3) The operator provides a list with the return showing the name and address of the occupant, the date of the charge and the reason for its uncollectability and any means of identification of the

---

3. Editor's Note: The Appendix is included as an attachment to this chapter.

4. Editor's Note: The bad debt deduction form is on file in the County offices.

occupant in the hotel's possession, such a driver's license, social security number or credit card numbers.

(4) The operator shall previously have filed with the County Treasurer a statement outlining the hotel's guidelines and procedures regarding collections of bad debts and subsequent write-offs of these accounts.

(5) The deduction is fully supported by registration or folio cards maintained separately from other records and batched by accounting period to facilitate audit.

K. Regulation 111: Regulations applicable to booking agents. Any regulation which applies to an operator shall apply to a booking agent, provided that the booking agent collects the tax. **[Added 3-22-2016 by Ord. No. 04-16]**

ARTICLE II
Allegheny Regional Asset District
[Adopted by the Board of Commissioners 3-31-1994]

§ 475-9. Definitions.

A. General definitions. As used in this article, the following words and phrases shall have the meaning given to them in this section unless the context clearly indicates otherwise:

ACT — Act 77 of 1993.

ADVISORY BOARD — The twenty-seven-member board appointed by the Board to advise the Board on the administration of the Board's duties under the Act.

BOARD — The governing body of the District.

BOARD OF COMMISSIONERS — The Board of Commissioners of Allegheny County.

CHIEF CLERK — The Chief Clerk of Allegheny County.

CITY — The City of Pittsburgh.

COMMONWEALTH — The Department of Revenue of the Commonwealth of Pennsylvania.

CONSIDERATION — Receipts, fees, charges, rentals, leases, cash, credits, property of any kind or nature, or other payment received by operators in exchange for or in consideration of the use or occupancy by a transient of a room or rooms in a hotel for any temporary period.

COUNTY — Allegheny County.

DEPARTMENT — The Department of Revenue of the Commonwealth of Pennsylvania.

DEPARTMENT OF TRANSPORTATION — The Pennsylvania Department of Transportation.

DISTRICT — The Allegheny Regional Asset District established under this article.

DISTRICT EMPLOYEE — The Chairman and members of the Board of the District, counsel employed by the District, the chief administrative officer of the District and any employee with discretionary powers which may affect the outcome of the District's decisions in relation to a private corporation or business or any employee who by virtue of the employee's job function could influence the outcome of such a decision.

FIRST AND SECOND CLASS COUNTY CODE PROPERTY TAX RELIEF ACT — The First and Second Class County Property Tax Relief Act, Pa. Stat. Ann. Tit, 72, § 4749.1 et seq.

FUND — The Allegheny Regional Asset District Sales and Use Tax Fund.

HOTEL — A hotel, motel, inn, guest house or other building located within the taxing jurisdiction which holds itself out by any means including advertising, license, registration with any innkeepers group, convention listing association, travel publication or similar association or with any government agency as being available to provide overnight lodging or use of facility space for consideration to persons seeking temporary accommodation; anyplace which advertises to the public at large or any segment thereof that it will provide beds, sanitary facilities or other space for a temporary period to members of the public at large; any place recognized as a hostelry; provided that portions of such facility which are devoted to persons who have established permanent residence shall not be included in this definition.

IMMEDIATE FAMILY — A parent, spouse, child, brother, sister or like relative-in-law.

INITIAL YEAR IN WHICH DISBURSEMENTS ARE RECEIVED — The first calendar year in which disbursements are received by qualified municipalities or the County under § 3157-B(b) of the Act and § 155-16 of this article.

MINORITY BUSINESS ENTERPRISE — A small business concern which is:

(1) A sole proprietorship, owned and controlled by a socially and economically disadvantaged individual.

(2) A partnership or joint venture controlled by socially and economically disadvantaged individuals in which 51% of the beneficial ownership interest is held by socially and economically disadvantaged individuals.

(3) A corporation or other entity controlled by socially and economically disadvantaged individuals in which at least 51% of the voting interest and 51% of the beneficial ownership interest are held by socially and economically disadvantaged individuals.

OCCUPANCY — The use or possession or the right to the use or possession by any person other than a permanent resident of any room in a hotel for any purpose or the right to the use or possession of the furnishings or to the services accompanying the use and possession of the room.

OPERATOR — Any individual, partnership, nonprofit or profit-making association or corporation or other person or group of persons who maintain, operate, manage, own, have custody of or otherwise possess the right to rent or lease overnight accommodations in any hotel to the public for consideration.

PARTY OFFICER — The following members or officers of any political party:

(1) A member of a national committee.

(2) A chairman, vice chairman, secretary, treasurer or counsel of a state committee or members of the executive committee of a state committee.

(3) A County chairman, vice chairman, counsel, secretary or treasurer of a County committee.

(4) A city chairman, vice chairman, counsel, secretary or treasurer of a city committee.

PATRON — Any person who pays the consideration for the occupancy of a room or rooms in a hotel.

PERMANENT RESIDENT — Any person who has occupied or has the right to occupancy of any room or rooms in a hotel as a patron or otherwise for a period exceeding 30 consecutive days.

PERSON — A business, individual, corporation, union, association, firm, partnership, committee, club or other organization or group of persons.

PUBLIC EMPLOYEE — Any individual employed by the Commonwealth of Pennsylvania or a political subdivision.

PUBLIC OFFICER — Every person elected to any public office of the Commonwealth of Pennsylvania government or any political subdivision of the Commonwealth of Pennsylvania.

PUBLIC OFFICIAL — Any elected or appointed official in the executive, legislative or judicial branch of Commonwealth of Pennsylvania government or any political subdivision of the Commonwealth of Pennsylvania. The term shall not include members of advisory boards who have no authority to expend public funds other than reimbursement for personal expenses or to otherwise exercise the power of the Commonwealth of Pennsylvania or any political subdivision of the Commonwealth of Pennsylvania. The term shall also not include any appointed official who receives no compensation other than reimbursement for actual expenses.

QUALIFIED MUNICIPALITIES — Municipalities within Allegheny County meeting the standards set forth in § 3170-B of the Act.

REGIONAL ASSET — A civic, recreational, library, sports or cultural facility or project designated as such by the District.

RENT — Consideration for the occupancy of hotel room.

ROOM — A space in a hotel set aside for use and occupancy by patrons, or otherwise, for consideration, having at least one bed or other sleeping accommodation provided therein.

SENIOR CITIZENS REBATE AND ASSISTANCE ACT — The Senior Citizens Rebate and Assistance Act, Pa. Stat. Ann. Tit. 72, § 4751-1 et seq.

SOCIALLY AND ECONOMICALLY DISADVANTAGED INDIVIDUALS — Persons who are citizens of the United States and who are Black Americans, Hispanic Americans, Native Americans, Asian-Pacific Americans and other minorities or other persons found to be disadvantaged by the Small Business Administration pursuant to the Small Business Act (P.L. 85-536, 15 USC § 631 et seq.).

TAX — The taxes authorized to be imposed by the Allegheny County Board of Commissioners under the Act. Depending upon the context, "tax" shall mean a one-percent tax on the purchase price of each separate sale at retail of tangible personal property or services within the County; a one-percent tax on the purchase price of the use, within the County, of tangible personal property purchased at retail and on services purchased at retail; or, a one-percent excise tax on the rent upon every occupancy of a room or rooms in a hotel in the County.

TAX REFORM CODE OF 1971 — The Tax Reform Code of 1971, Pa. Stat. Ann. Tit. 72, § 7101 et seq. (1990).

TEMPORARY — A period of time not exceeding 30 consecutive days.

TRANSACTION — The activity involving the obtaining by a transient or patron of the use or occupancy of a hotel room from which consideration emanates to the operator under an express or an implied contract.

TRANSIENT — Any individual who obtains accommodation in any hotel for himself by means of registering at the facility for the temporary occupancy of any room for the personal use of that individual by paying to the operator of the facility a fee in consideration therefor.

TREASURER — The State Treasurer of the Commonwealth of Pennsylvania.

WOMEN'S BUSINESS ENTERPRISE — A small business concern which is at least 51% owned and controlled by women, or, in the case of any publicly owned business, at least 51% of the stock of which is owned by one or more women and whose management and daily business operations are controlled by one or more of the women who own it.

B. Incorporation of definitions.

(1) This article incorporates in its entirety herein all of the definitions set forth in § 7201 of the Tax Reform Code of 1971, Pa. Stat. Ann. Tit. 72, § 7101 et seq.

(2) This article incorporates in its entirety herein all of the definitions set forth in § 4749.3 of the First and Second Class County Code Property Tax Relief Act, Pa. Stat. Ann. Tit. 72, § 4749.3.

(3) This article incorporates in its entirety herein all of the definitions set forth in § 4751-3 of the

Senior Citizens Rebate and Assistance Act, 72 Pa. Stat. Ann. Tit. 72, § 4751-3.

§ 475-10. Creation of District.

A. District created. Pursuant to Subarticle (b), § 3110-B of the Act, there is hereby created a body corporate and politic to be known as the "Allegheny Regional Asset District."

B. Powers of the District. The District shall exercise all of the powers necessary or convenient for carrying out its purposes, including the following:

(1) To have continuing succession.

(2) To sue and be sued, implead and be impleaded, complain and defend in all courts.

(3) To adopt, use and alter at will a corporate seal.

(4) To make, enter into and award contracts with any person, association, partnership or corporation for the development, design, financing, construction, improvement, maintenance, operation, furnishing, fixturing, equipping and repair of regional assets or parts of regional assets.

(5) To conduct financial and performance reviews and audits of regional assets.

(6) To conduct long-term planning necessary for the efficient and effective operation and development of regional assets.

(7) To make bylaws for the regulation of its affairs and to promulgate rules, regulations and policies in connection with the performance of its functions and duties.

(8) To borrow money.

(a) To borrow money for the purpose of paying the costs of any project and to evidence the same.

(b) To make and issue negotiable bonds of the District and secure the payment of the bonds, or any part of the bonds, by pledge or deed of trust of all or any of its revenues, rentals, receipts and contract rights.

(c) To make such agreements with the purchasers or holders of the bonds or with other obligees of the District in connection with any bonds, whether issued or to be issued, as the District shall deem advisable, which agreements shall constitute contracts with the holders or purchasers.

(d) To obtain such credit enhancement or liquidity facilities in connection with any bonds as the District shall determine to be advantageous.

(e) To, in general, provide for the security for the bonds and for the rights of the holders of the bonds.

(9) To make, enter into and award contracts of every name and nature and to execute all instruments necessary or convenient for the carrying out of its business.

(10) To borrow money and accept grants and to enter into contracts, leases, subleases, licenses or other transactions with any federal agency, state public body, political subdivision, person, association, partnership or corporation.

(11) To pledge, hypothecate or otherwise encumber any of its property, real, personal or mixed, tangible or intangible, and its revenues or receipts, including, but not limited to, any interest the District may have in any lease or sublease of regional assets or parts of regional assets.

(12) To procure such insurance containing such coverage, including, without limitation, insurance covering the timely payment in full of principal and interest on bonds of the District, in such amount, from such insurers, as the District may determine to be necessary or desirable for its purposes.

(13) To invest its money.

(14) To cooperate with any federal agency, state public body or political subdivision.

(15) To invest any funds not required for immediate disbursement in reserve or sinking funds.

(16) To appoint all officers, agents and employees required for the performance of its duties and fix and determine their qualifications, duties and compensation and retain or employ other agents or consultants. The Board shall develop, implement and evaluate plans and process to assure that all persons are accorded equality of opportunity in employment and contracting by the Board.

(17) To enroll its employees in a retirement system, including an existing retirement system of the County, city or other governmental entity.

(18) To appoint and fix the compensation of chief counsel and assistant counsel, who shall not be required to be employees of the District, to provide it with legal assistance. Notwithstanding the provisions of 42 Pa.C.S. § 8525 (relating to legal assistance), the District through its counsel shall defend actions brought against the District and its officers and employees when acting within the scope of their official duties.

(19) To maintain an office in the County.

(20) To assist in the development and expansion of minority business enterprises and women's business enterprises.

(21) To do all acts and things necessary or convenient for the promotion of its purposes and the general welfare of the district and to carry out the powers granted to it by the Act.

C. Limitation of District's powers. The following limitations and conditions shall apply to the operations of the District:

(1) The District shall have no power to pledge the credit or taking powers of the Commonwealth of Pennsylvania or any other government agency except the credit of the District, nor shall any of the bonds of the District be deemed a debt or liability of the Commonwealth of Pennsylvania or of any other government agency, except as otherwise agreed by the Commonwealth of Pennsylvania or a government agency.

(2) Neither the Commonwealth of Pennsylvania nor any government agency except the District shall be liable for payment of the principal, interest or premium on any of the District's bonds, except as otherwise agreed by the Commonwealth of Pennsylvania or a government agency.

(3) Notwithstanding any provision of the Act or any other state statute to the contrary, or of any implication that may be drawn from the Act or any other state statute, the Commonwealth of Pennsylvania and all other government agencies, except the District, shall have no legal or moral

obligation for the payment of any expenses or obligations of the District, including, but not limited to, bond principal and interest, the funding or refunding of any reserve and any administrative or operating expenses whatsoever, except as otherwise agreed to by the Commonwealth of Pennsylvania or another government agency.

(4) Bonds in the District shall contain a prominent statement of the limitations set forth in this subsection and shall further recite that obligees of the District shall have no recourse, either legal or moral, to the Commonwealth of Pennsylvania or to any other government agency for payment of the bonds, except as otherwise agreed to by the Commonwealth of Pennsylvania or another government agency.

(5) The District shall not assume the responsibility of employing personnel directly engaged in the operation of regional assets, but may enter into contracts with the city, County and other public and private organizations for the corporation and financing of regional assets.

D. District Board.

(1) The powers and duties of the District shall be exercised by a seven-member Board.

(2) The members of the Board shall be selected, serve terms of office, hold meetings and conduct business in accordance with the provisions of § 3111-B of the Act.

(3) No member of the Board or employee of the District shall be, concurrent with the members or employee's position with the District, a party officer, public officer, public official, public employee or a member of the immediate family of a party officer, public officer or public official.

E. Advisory Board. The Board shall appoint a twenty-seven-member Advisory Board. The Advisory Board shall serve to advise the Board in the administration of its duties and functions. The members of the Advisory Board shall serve terms as provided in § 3112-B(D) of the Act.

§ 475-11. Regional assets.

A. Designation of regional assets. The District may assume the financial functions of the city and County with respect to the support of regional assets vital to the quality of life within the County.

B. Limitation on support. The District shall not provide financial support for the following:

(1) Any health-care facility or institution which predominantly provides elementary, secondary or higher education or other training.

(2) Any park which contains fewer than 200 acres, except for linear parks located in more than one city, township, borough or home rule municipality, other than the County.

(3) Any asset which fails to serve a significant number of persons who are not residents of the city, borough or township within which the asset is located.

(4) Any library which is not a regional library resource center, a district library center or which is not part of a library system serving multiple municipalities.

§ 475-12. Imposition of tax.

A. Sales tax. Pursuant to authority granted under Subarticle (e) of the Act, the Board of Commissioners does hereby levy, assess and impose upon each separate sale at retail of tangible personal property or services within the boundaries of the County, a tax on the purchase price. The tax shall be collected by the vendor from the purchaser and shall be paid over to the Commonwealth as provided in this section.

B. Use tax. Pursuant to authority granted under Subarticle (e) of the Act, the Board of Commissioners does hereby levy, assess and impose upon the use, within the County, of tangible personal property purchased at retail, and on services purchased at retail, a tax on the purchase price. The tax shall be paid over to the Commonwealth by the person who makes the use. The use tax imposed under this Part shall not be paid over to the Commonwealth by any person who has paid the tax imposed by Subsection A of this § 155-12 or has paid the tax imposed by this Section to the vendor with respect to such use.

C. Hotel occupancy excise tax. Pursuant to Subarticle (e) of the Act, the Board of Commissioners does hereby levy, assess and impose an excise tax on the rent or consideration received by each operator of a hotel within the County from each transaction of renting a room or rooms to accommodate transients or patrons. The tax shall be collected by the operator or owner of the hotel from the patron or transient and paid over to the Commonwealth.

D. Rate and uniformity.

(1) The tax levied, assessed and imposed in Subsections A, B and C of this section shall be imposed at a rate of 1%.

(2) The tax levied, assessed and imposed under Subsections A, B and C of this section shall be uniform.

E. Tax computation. The tax levied, assessed and imposed under Subsections A and B of this section shall be computed as follows:

Purchase Price	**Amount of Tax to be Collected**
$0.50 or less	No tax
$0.51 or more, but less than $1.51	$0.01
$1.51 or more, but less than $2.51	$0.02
$2.51 or more, but less than $3.51	$0.03
$3.51 or more, but less than $4.51	$0.04
$4.51 or more, but less than $5.51	$0.05
$5.51 or more, but less than $6.51	$0.06
$6.51 or more, but less than $7.51	$0.07
$7.51 or more, but less than $8.51	$0.08
$8.51 or more, but less than $9.51	$0.09
$9.51 or more, but less than $10.51	$0.10
More than $10	1% or each $10 purchase price, plus the above charges upon any fractional part of a $10 increment

F. Situs for imposition of tax.

(1) Situs for retail sales. For purposes of this section and except as otherwise provided in this section, a sale at retail shall be deemed to be consummated at the place of business of the retailer unless the tangible personal property sold is delivered by the retailer or his agent to an out-of-state destination or to a common carrier for delivery to an out-of-state destination or the United States mails for delivery to a out-of-state destination. In the event a retailer has more than one place of business in the Commonwealth of Pennsylvania which participates in the sale, the sale shall be deemed to be consummated at the place of the retailer where the initial order for the tangible personal property is taken, even though the order must be forwarded elsewhere for acceptance, approval of credit, shipment or billing. A sale by a retailers employee shall be deemed to be consummated at the place of business from which that employee works.

(2) Situs for vehicle, aircraft and motorcraft sales. The sale at retail or use of a motor vehicle, trailer, semi-trailer or mobile home, as defined in 75 Pa.C.S. (relating to vehicles), or of a motor boat, aircraft or other similar tangible personal property, required under either federal or state laws to be registered or licensed, shall be deemed to have been completed or used at the address of the purchaser or user. The tax due shall be paid by the purchaser or user directly to the Department of Transportation at the time of making application for the issuance of a certificate of title or directly to the Department if licensing by the Department of Transportation is not required or obtained.

(3) Situs for utility services. The sale or use of steam, natural and manufactured gas, electricity and telephone and telegraph service shall be deemed to occur at the service address in the County, which is the address where the telephone equipment is located and to which the telephone number is assigned or where the telegraph originated or where the meter which registers the service is located, without regard to where the services are rendered.

G. Exclusions from tax. The tax imposed under Subsections A and B shall not be imposed upon the sale at retail or use of materials to be incorporated into and made a part of real estate pursuant to a contract for the construction, reconstruction, remodeling, repairing, maintenance or sale of such real estate, when the contract is either at a fixed price not subject to change or modification or entered into pursuant to the obligation of a formal written bid which cannot be altered or withdrawn, and, in either case, such contract was entered into or such bid made prior to July 1, 1994.

§ 475-13. Licenses.

A license for the collection of the taxes levied, assessed and imposed under § 475-12 of this article shall be issued pursuant to Article II of the Tax Reform Code of 1991, Pa. Stat. Ann. Tit. 72, § 7201 et seq., or a separate license may be issued by the Department for the collection and reporting of the taxes levied, assessed and imposed under § 475-12 of this article. The license or licenses shall be nonassignable and subject to renewal periodically at such times as may be required by the Department in regulations but in no event more frequently than once within a five-year period. No fee shall be charged for either a license or any renewal. Failure of any person to obtain a license shall not relieve that person of liability to pay the taxes levied, assessed or imposed under § 475-12 of this article.

§ 475-14. Rules and regulations; enforcement.

A. The rules and regulations promulgated under § 270 of the Tax Reform Code of 1971, Pa. Stat. Ann. Tit. 72, § 7270, shall be applicable to the taxes levied, assessed or imposed under § 475-12 of this article insofar as such rules and regulations are consistent with § 475-12.

B. The Department shall administer and enforce the provisions of § 475-12 of this article and is authorized to promulgate and enforce rules and regulations not inconsistent with the provisions of this Part, relating to any matter or thing pertaining to the administration and enforcement of the provisions of § 475-12 of this article. The Department may prescribe the extent to which any of such rules and regulations shall be applied without retroactive effect.

C. The Chief Clerk is hereby authorized to adopt any rules and regulations necessary for the implementation of this article.

§ 475-15. Dedication and disbursement of tax revenues.

A. Dedication. There is hereby created the Allegheny Regional Asset District Sales and Use Tax Fund. The Treasurer shall be custodian of the fund which shall be subject to the provisions of law applicable to funds listed in § 303 of the Act of April 9, 1939 (P. L. 343, No. 176), known as the "Fiscal Code." Taxes imposed under § 155-12 of this article shall be received by the Department and paid to the Treasurer and, along with interest and penalties, less any collection costs allowed under the Act and any refunds and credits paid, shall be credited to the fund not less frequently than every two weeks. During any period prior to the credit of moneys to the fund, interest earned on moneys received by the Department and paid to the Treasurer under this section shall be deposited into the fund. All moneys in the fund including, but not limited to, moneys credited to the fund under this Section, prior year encumbrances and the interest earned thereon, shall not lapse or be transferred to any other fund, but shall remain in the fund and must be used exclusively as provided in this section. Pending their disbursement, moneys received on behalf of or deposited into the fund shall be invested or reinvested as are other moneys in the custody of the Treasurer in the manner provided by law. All earnings received from the investment or reinvestment of the moneys shall be credited to the fund.

B. Disbursement. On or before the 10th day of every month, the Treasurer shall make the following disbursements on behalf of the County from the moneys which are, as of the last day of the previous month, contained in the fund:

(1) One-half of the moneys to the District for use by it in the manner provided by the Act, provided that the District shall not utilize more than 1% of the moneys received by the District for the purpose of administrative expenses.

(2) One-fourth of the moneys to qualified municipalities for use by the municipalities in the manner provided by the Act.

(3) One-fourth of the moneys to the County for use by the County in the manner provided by § 3171-B of the Act and § 155-16 of this article.

§ 475-16. Tax relief.

A. Repeal of County personal property tax. Effective January 1, 1995, the first full calendar year in which disbursements are received by the County from the Treasurer from the collection of the taxes levied, assessed and imposed under § 475-12 of this article, any County personal property tax previously levied, assessed and imposed by the Board of Commissioners is hereby and shall be repealed.

B. County tax relief program for long-time senior citizen owner-occupants of personal residences.

(1) All or a portion of the revenues remaining from the disbursements received from the Treasurer from the collection of the taxes levied, assessed and imposed under § 475-12 of this article, after repeal of the County's personal property tax as provided in Subsection A of this section, shall be

used for the creation and implementation of a program of County tax relief under the First and Second Class County Property Tax Relief Act, Pa. Stat. Ann. Tit. 72, § 4749.1 et seq., for long-time senior citizen owner-occupants of personal residences. Property eligible for tax relief under this Section shall be limited to a primary personal residence owned by a single person aged 65 or older or by married persons if either spouse is 65 years of age or older. Tax relief provided pursuant to this section shall be limited to persons eligible for property tax rebates under the Senior Citizens Rebate and Assistance Act, Pa. Stat. Ann. Tit. 72, § 4751-1 et seq.

(2) The Board of Commissioners shall by official action each year set and determine the specific amount of revenue from the taxes levied, assessed and collected under § 475-12 of this article which shall be used for the implementation of the programs of tax relief provided for under this section.

§ 475-17. Filing of copy of article.

Delivery to Department. The County Clerk is hereby authorized to cause a certified copy of this article to be delivered to the Department no later than 90 days prior to the effective date of this article.

ARTICLE III
Tax Assessment Limitation Program
[Adopted by the Board of Commissioners 1-28-1999]

§ 475-18. Definitions.

As used in this article, the following terms shall have the meanings indicated:

ACT 77 — The Act of December 22, 1983, Public Law 529, No. 77, codified as the Allegheny County Regional Asset District Law, Pa.Stat.Ann. Tit. 16, § 6101 et seq.

ALLEGHENY REGIONAL ASSET DISTRICT LAW — See the definition of "Act 77" above.

ASSESSMENT — The fair market value of real property as determined by the Board of Property Assessment, Appeals and Review of Allegheny County.

BOARD OF COMMISSIONERS — The Board of Commissioners of Allegheny County.

BOARD OF PROPERTY ASSESSMENT — The Board of Property Assessment, Appeals and Review of Allegheny County.

COUNTY — Allegheny County.

ELIGIBLE TAXPAYER — A long-time owner/occupant of a principal residence in the County who is:

A. A single person aged 62 or older during a calendar year in which County real property taxes are due and payable and whose household income does not exceed $25,000.

B. Married persons if either spouse is 62 or older during a calendar year in which County real property taxes are due and payable and whose combined household income does not exceed $25,000.

HOUSEHOLD INCOME — All income received by an eligible taxpayer while residing in his or her principal residence during a calendar year.

INCOME — All income from whatever source derived, including, but not limited to, salaries, wages, bonuses, commissions, income from self-employment, alimony, support money, cash publish assistance and relief, the gross amount of any pension or annuities including railroad retirement benefits, all benefits received under the Federal Social Security Act except medicare benefits, all benefits received under the Federal Social Security Act except Medicare benefits, all benefits received under state unemployment insurance laws and veteran's disability payment, all interest received from the federal or any state government, or any instrumentality or political subdivision thereof, realized capital gains, net income from rentals, workers' compensation and the gross amount of loss of time insurance benefits, life insurance benefits and proceeds, except the first $5,000 of the total of death benefit payments and gifts of cash or property other than transfers by gift between members of a household in excess of a total value of $300, but shall not include surplus food or other relief in kind supplied by a governmental agency or property tax or rent rebate or inflation dividend.

LONG-TIME OWNER/OCCUPANT — Any person who for at least 10 continuous years has owned or has occupied the same dwelling place as a principal residence and domicile, or any person who for at least five years has owned and occupied the same dwelling as a principal residence and domicile if that person received assistance in the acquisition of the property as part of a government or nonprofit housing program.

PERSON — A natural person.

PRINCIPAL RESIDENCE — The dwelling place and so much of the land or lots surrounding it as is reasonably necessary for use of the dwelling as a home, owned and occupied by a person. The term "principal residence" shall also include premises occupied by reason of ownership in a cooperative housing corporation, mobile homes which are assessed as realty for local property tax purposes and the land upon which the mobile home is situated, and other similar living accommodations, as well as a part of a multidwelling or multipurpose building and a part of the land upon which it is built. It shall also include premises occupied by a person and located on land owned by a nonprofit incorporated association, of which the person is a member, if the person is required to pay a pro rata share of the property taxes levied against the association's land. It shall also include premises occupied by a person if he is required by law to pay a property tax by reason of his or her ownership or rental (including a possessory interest) in the dwelling, the land, or both. An owner includes a person in possession under a contract of sale, deed of trust, life estate, joint tenancy or tenancy in common or by reason of statutes of descent and distribution.

PROGRAM — See the definition of "special tax provisions" below.

SENIOR CITIZENS REBATE AND ASSISTANCE ACT — The Act of March 11, 1971, P.L. 104, No. 3, as amended, codified at Pa.Stat.Ann. Tit. 72, § 4751-1 et seq.

SPECIAL TAX PROVISIONS — The limitation of the assessment on the principal residence of an eligible taxpayer to the amount determined by the Board of Property Assessment to be applicable to that property for the calendar year 1993.

TREASURER — The office of the Treasurer of Allegheny County.

§ 475-19. Special tax provisions; limitation of County real estate tax liability.

A. All eligible taxpayers in the County who are long-time owner/occupants of a principal residence shall be deemed a separate class of subjects of taxation and shall be entitled to the benefit of the special tax provisions of this section.

B. All eligible taxpayers in Allegheny County who are long-time owner/occupants shall be entitled to have the assessment on his or her principal residence maintained at or limited to the amount determined by the Board of Property Assessment for the calendar year 1993 if the household income of the eligible taxpayer(s) does not exceed $25,000.

§ 475-20. Participation in limitation of tax assessment program.

Any person paying property taxes in the County may apply to the Department of Property Assessment for certification as a participant in the assessment limitation program authorized under this article. In order to be eligible to participate in the program, the person must meet the following conditions:

A. The person must be a single person ages 62 or older, or be married persons with either spouse being 62 years of age or older.

B. The person must be a long-time owner/occupant.

C. The property owned by the person must be the principal residence of the person.

D. The person's household income must not exceed $25,000.

§ 475-21. Rules and regulations.

The Board of Property Assessment and Treasurer shall have the authority to issue rules and regulations with respect to the administration of the limitation of assessment program established under this article. Such rules and regulations shall include, but not be limited to, reasonable proof of household income, proof of residence and ownership of the principal residence, proof of qualification for or receipt of a property tax rebate under the Senior Citizens Rebate and Assistance Act, provision of the tax bill or receipt for the County real estate taxes owed or paid in connection with the principal residence, the rebate, refund or forgiveness of taxes as shall be reasonably and necessarily required from time to time to effectuate the limitation of assessment program, and any other reasonable requirements and conditions as may be necessary to operate the assessment limitation program.

ARTICLE IV
LERTA
[Adopted by the County Council 7-5-2000 by Ord. No. 16-00; amended in its entirety 10-21-2003 by Ord. No. 54-03]

§ 475-22. Definitions.

As used in this article, the following words and phrases shall have the meanings set forth below:

ASSESSED VALUATION — The value of a parcel of real property as established by the Office or the Court of Common Pleas of Allegheny County pursuant to the provisions of the Second Class County Assessment Law, 72 P.S. § 5452.1 or such other applicable law or ordinance, for the purpose of the assessment and levy of real property taxes. The term "assessed valuation" shall not include the value of the parcel of real property upon which a building is located.

CITY — The City of Pittsburgh.

COMMERCIAL RESIDENTIAL USE — Space is used for a commercial residential use if it is suitable for and is generally to be used by the occupants for personal residence purposes and is not occupied by the owner (or a relative of the owner). Examples of space used for a commercial residential use include (but are not limited to) apartment buildings and hotels.

CONSTRUCTION — The erection of a building or buildings on previously unoccupied land, or upon land on which a building or buildings have been demolished or razed for the purpose of erecting a new building or buildings consisting of industrial, commercial (including commercial residential use) or other business units designated to bring about higher standards of safety, health, economic use, or sociological growth or amenity.

CONVERTED RESIDENTIAL PORTION — That portion of a building which in a qualified conversion to commercial residential use is converted to commercial residential use, measured by floor area between ground level and the roof, together with any area of the property or a property in close proximity to be used for parking by residents or guests only and not by the public.

COUNTY — The County of Allegheny.

DETERIORATED AREA — Those specific geographic areas within the City of Pittsburgh described in § 475-23 hereof, which have been determined to be physically impaired on the basis of one or more standards, including, but not limited to, the following:

A. The buildings, by reason of age, obsolescence, inadequate or outmoded design or physical deterioration, have become economic or social liabilities.

B. The buildings are substandard, unsanitary, unhealthy or unsafe.

C. The buildings are overcrowded, poorly spaced or so lacking in light, space and air as to be unwholesome.

D. The buildings are faultily arranged, cover the land to an excessive extent, show a deleterious use of land, or exhibit any combination of the above which is detrimental to health, safety or welfare.

E. A significant percentage of buildings are more than 20 years of age.

F. A substantial amount of unimproved, overgrown and unsightly vacant land exists which has remained so for a period of five years or more, indicating a growing or total lack of utilization of land for economically desirable purposes.

G. A disproportionate number of properties are in a state of tax delinquency.

H. The area is an impoverished area as certified by the Department of Community Affairs (now the Department of Community and Economic Development) under criteria set forth in the Act of November 29, 1967, P.L. 636, No. 282, known as the "Neighborhood Assistance Act"[5] or is a blighted area under criteria set forth in the Act of May 24, 1945, P.L. 991, No. 385 known as the "Urban Redevelopment Law."[6]

DETERIORATED PROPERTY — Any industrial, commercial or other business property owned by a property owner or taxpayer and located in a deteriorated area, as herein provided, or any such property which has been the subject of any order by a government agency requiring the unit to be vacated, condemned or demolished by reason of noncompliance with laws, ordinances or regulations.

DETERIORATED UNDERUTILIZED TRANSITION AREAS — Those deteriorated areas within the City of Pittsburgh which City Council, after public hearing, has determined to be physically impaired on the basis of one or more standards set forth in the definition of "deteriorated area" above and additionally containing a high percentage of poorly spaced, large, at least 20 years old, underutilized buildings with a design no longer conducive to the original commercial, industrial or other business use.

DOWNTOWN DISTRICT — The area begins at the intersection of Ft. Pitt Boulevard and Stanwix Street and continues northward on Stanwix Street to the Boulevard of the Allies. The boundary line then continues eastward on the Boulevard of the Allies until it meets Wood Street where the line continues northward to Fourth Avenue. The boundary line then continues westward until it meets the eastern boundary of Block 1-H, Lot 135. The boundary line then goes south, west, and north around Block 1-H, Lot 135 and then continues westward on Fourth Avenue until it meets the eastern boundary of Block 1-H, Lot 30. The boundary line then goes north, west, and south around Block 1-H, Lot 30 and then continues westward on Fourth Avenue until Stanwix Street where the line continues northward to Forbes Avenue where it goes eastward on Forbes Avenue until it meets the western boundary of 1-D-115 where it goes northwesterly until Liberty Avenue. The boundary line then continues northeasterly on Liberty Avenue until it meets Sixth Street where the line continues northward to the northern border of Block 8-S, Lot 62 where the boundary line goes eastward to Barkers Way. The line continues northward on Barkers Way until Fort Duquesne Boulevard where it continues eastward until Garrison Way. The boundary then follows Garrison Way southward to French Street and continues east on French Street to Tenth Street. The boundary then follows Tenth Street southward to Liberty Avenue. The boundary goes past Liberty Avenue to William Penn Place and continues southwesterly along William Penn Place until Seventh Avenue. The boundary then follows Seventh Avenue northwesterly until Smithfield Street where it follows Smithfield Street southward to the northern border of Block 2-A-179 where it travels east to Montour Way. The boundary then follows Montour Way southward to Strawberry Street where it goes northwesterly to Coffey Way. The boundary continues southward along Coffey Way until it meets Sixth Avenue. The line continues northward on Sixth Avenue until it meets Liberty Avenue where it continues westward to its intersection with Sixth Street. The boundary then moves eastward along the northern border of Blocks 1-D-179, 188, 243, 245, 246, 247, 250, and 251. The boundary then moves southward along the eastern border of 1-D-251 until it meets Fifth Avenue where it goes eastward until Book Way. The boundary then follows Book Way southward to Forbes Avenue where it continues eastward to Smithfield Street. The boundary then goes southward to Fourth Avenue where it continues eastward until Ross Street where it continues southward to First Avenue. The boundary then follows First Avenue west until its intersection with Cherry Way. Finally, the boundary then follows Cherry Way south to Fort Pitt Boulevard where it follows Fort Pitt Boulevard westward to its intersection at Stanwix Street. Excluded from the area

5. Editor's Note: See 62 P.S. § 2081 et seq.

6. Editor's Note: See 35 P.S. § 1701 et seq.

constituting the Downtown District shall be that property described as lot and block number 9-N-131. The Downtown District comprises in part the areas formerly designated as "First Side" and the "Cultural District."

EXEMPTION — The nonliability for the payment of additional real property taxes to the County resulting from increased assessed valuation attributable to the actual cost of new construction or construction, reconstruction or improvements made to deteriorated property within a deteriorated underutilized transition area within a deteriorated area.

IMPROVEMENTS — Repair, construction or reconstruction, including alterations and additions, having the effect of rehabilitating a deteriorated property so that it becomes habitable or attains higher standards of safety, health, economic use or amenity, or is brought into compliance with laws, ordinances or regulations governing such standards. Ordinary upkeep and maintenance shall not be deemed an improvement. The conversion of deteriorated property to commercial residential use shall qualify as an improvement for purposes of this article.

LOCAL TAXING AUTHORITY — The County, the city or the school district.

NEW CONSTRUCTION FOR COMMERCIAL RESIDENTIAL USE — The construction of property located in a deteriorated, underutilized transition area for commercial residential use, provided that at least 50% of the total building area measured by floor area between the ground level and the roof, together with any area of the property or a property in close proximity to be used for parking by residents or guests only, and not by the public, is used for commercial residential use.

NORTH SHORE DISTRICT — The area begins at the Allegheny River and Sixteenth Street. The boundary line then continues northward on Chestnut Street (Sixteenth Street) to PA Route 28. The boundary line then continues in a northeasterly fashion approximately 370 feet past Heinz Street. The boundary line then continues southward in a straight line to the Allegheny River, where it continues westward along the Allegheny River until Sixteenth Street.

OFFICE — The Office of Property Assessments of Allegheny County, Pennsylvania, or such successor entity responsible by law or by ordinance for determining the valuation of real estate for the assessment and levy of real estate taxes in Allegheny County.

PROJECT — The improvement of a building carried out during a single continuous period of time according to a common plan.

PROPERTY OWNER — Any natural person, partnership, unincorporated association, or corporation, nonprofit or otherwise. Whenever used in any provision of this article, the word "property owner" as applied to partnerships shall mean and include all members thereof and as applied to corporations shall mean and include all officials or officers thereof. The term "property owner" used in this article is synonymous with "taxpayer."

QUALIFIED CONVERSION TO COMMERCIAL RESIDENTIAL USE — Improvements having the effect of converting all or a portion of property located in a deteriorated underutilized transition area to commercial residential use so that it becomes habitable; provided that at least 50% of the total building area, measured by floor area at ground level and above, is so converted. Neither construction nor ordinary upkeep and maintenance shall be deemed to be an improvement which qualifies as a qualified conversion to commercial residential use.

RECONSTRUCTION — The rebuilding of a building or buildings previously erected for the purpose of changing the economic use or amenity of such structure or to obtain higher standards of safety or health.

SCHOOL DISTRICT — The School District of the City of Pittsburgh.

STRIP DISTRICT — The area begins at Penn Avenue and Eleventh Street and continues north on Eleventh

Street to the Allegheny River. The boundary line continues along the river to Thirty-First Street and goes south to Liberty Avenue. The boundary line then continues east for a block to Thirty-Second Street until it meets Sassafras Way. The boundary then follows Sassafras Way south until it meets Twenty-Eighth Street. The area then continues westward on Twenty-Eighth Street to Liberty Avenue where it continues in a westward fashion until Sixteenth Street. The boundary follows Sixteenth Street north for one block until it meets Penn Avenue where it continues westward on Penn Avenue to Fourteenth Street. It then goes north for one block to Smallman Street and then goes west for one block on Smallman Street until it meets Thirteenth Street. The boundary line then continues southward on Thirteenth Street until it meets Penn Avenue. Finally, the boundary line continues in a southwesterly fashion along Penn Avenue until it intersects Eleventh Street.

TAX DELINQUENCY — All Allegheny County taxes, charges, fees, rents or claims due and unpaid by the owner of the deteriorated property or with respect to the deteriorated property as of the time of the application for an exemption or at any time thereafter during the term of the exemption. The term includes all penalties, additions, interest, attorneys' fees and costs due on such delinquent taxes, charges, rents or claims.

TAX YEAR — The twelve-month period from January 1 to December 31 annually.

TREASURER — The Treasurer of Allegheny County.

UPTOWN DISTRICT — The area begins at Fifth Avenue and Diamond Street and continues east on Fifth Avenue to Chatham Street where it travels northward to Colwell Street. The boundary line then follows Colwell Street eastward to Kirkpatrick Street where the boundary then goes southward to Interstate 376. The boundary follows Interstate 376 westward until Municipal Court Way where it then continues northward toward First Avenue. The boundary line then follows First Avenue westward to Try Way. The boundary line continues north along Try Way until Second Avenue where it continues to Crosstown Boulevard. The boundary line follows the Crosstown Boulevard until it meets Diamond Way. The boundary line then continues along Diamond Way to its intersection at Fifth Avenue.

§ 475-23. Boundaries.

A. Deteriorated areas. County Council does hereby concur with the determination made by the City of Pittsburgh Council after public hearing and finds that Wards 1 through 32 of the City of Pittsburgh respectively constitute a deteriorated area for purposes of this article.

B. Deteriorated underutilized transition areas. County Council does hereby concur with the determination made by the City of Pittsburgh Council after public hearing and finds that the following areas located within a deteriorated area are deteriorated underutilized transition areas: Downtown District, Strip District, Uptown District and North Shore District.

§ 475-24. Exemption.

A. Any property owner undertaking a project which is a qualified conversion to commercial residential use or new construction for residential use may apply for and receive from the County an exemption from County real property taxes due to the increased or additional assessed valuation attributable to the converted residential portion or to the residential portion of the new construction for commercial residential use (including related parking), in the amounts and in accordance with the provisions and limitations set forth in this article. The exemption from County real estate taxes shall be specifically limited to the additional assessed valuation attributable to the actual costs of the qualified conversion to commercial residential use or the new construction for commercial residential use of the property within the deteriorated underutilized transition area. Appeals from the amount of increased assessed valuation attributable to the actual costs of the qualified conversion to commercial residential use or the new construction for commercial residential use of the property within the deteriorated underutilized transition area may be taken by the taxpayer or any local taxing authority as provided by Chapters 207 and 209 of the Allegheny County Administrative Code, the County's Assessment Standards and Practice Ordinance or other applicable law or ordinance. Nothing herein shall preclude a taxpayer or any local taxing authority from appealing the assessed valuation of the deteriorated underutilized transition area property or any increases in assessed valuation not attributable to the qualified conversion to commercial residential use or the new construction for commercial residential use in accordance with Chapters 207 and 209 of the Allegheny County Administrative Code, the County's Assessment Standards and Practice Ordinance or other applicable law or ordinance.

B. No exemption from taxation is granted other than as set forth in Subsection A above.

§ 475-25. Exemption schedule.

The exemption from County real estate taxes granted to any property owner undertaking a project which is a qualified conversion to commercial residential use or new construction for commercial residential use shall be in accordance with the following conditions and schedule:

A. The exemption shall be limited to a period of 10 years. The ten-year exemption period will commence the year after completion of the improvements.

B. The tax exemption in the first two years described in Subsection A shall be 100% of the County's real estate taxation upon the assessed valuation attributable to the converted residential portion or to the residential portion of the new construction for commercial residential use (including related parking). In each succeeding two-year period of the exemption period, the exemption shall decline by 10%. In the ninth and tenth (and final) years, the exemption shall be 60% of the County's real estate taxation upon the assessed valuation attributable to the converted residential portion or to the residential portion of the new construction for commercial residential use (including related parking). In the 11th year and all succeeding years, the exemption shall end and the entire property (land and building) shall be fully taxable.

C. No exemption hereunder shall exceed $100,000 in any single year. There is no exemption granted on the assessed valuation attributable to land. There is no exemption granted if the construction or improvements are not completed by the end of the third calendar year following the year the initial building permit was issued.

D. There is no exemption granted and any existing exemption shall be revoked if and for so long as there exists any tax delinquency with respect to the property or any other property owned in the County by the property owner. An exemption for qualified conversion to residential use shall be revoked if and to the extent the property does not continue to be commercial residential use or for new construction for commercial residential use property. Any revocation shall not extend the exemption period set forth in Subsection A above.

§ 475-26. Procedure for obtaining exemption.

A. Prior to applying for a building permit, the property owner shall provide written notice to the Urban Redevelopment Authority of Pittsburgh (the "Authority"), on behalf of each appropriate local taxing authority, of its intention to request an exemption, together with:

(1) Evidence of zoning compliance;

(2) Evidence of sufficient financing for the project;

(3) Evidence of any required historic designation/preservation approvals; and

(4) Copies of the plans and specifications for the project.

B. Upon the Authority's review and approval of the materials submitted pursuant to Subsection A above, the property owner may obtain from the Bureau of Building Inspection a written application for exemption.

C. The property owner must certify on the application the following information:

(1) Name and address of the property owner.

(2) Lot and block number of the property to be converted to commercial residential use or on which the new construction for commercial residential use is to occur.

(3) The initial assessed valuation of the property before conversion to commercial residential use or new construction for commercial residential use.

(4) The current year County taxes on the property before conversion to commercial residential use or new construction for commercial residential use.

(5) The date the building permit was issued for the improvement.

(6) The summary of the plan of construction or plan of improvement.

(7) The anticipated date of completion.

(8) The actual costs of construction or the actual costs of improvement.

(9) Such other information as may be necessary to process such application for temporary exemption.

D. The property owner shall submit the application for exemption to the Authority, on behalf of each appropriate local taxing authority, no later than 180 days after the date when the building permit is issued. The Authority shall forward a copy of said application to each taxing authority and the Office within five business days of receipt or as otherwise mutually agreed. Failure to submit such exemption request within this time period may permit the County to deny any exemption claimed pursuant to this article for the initial tax year after completion of the construction or improvement, thereby limiting the length of the schedule of taxes exempted to less than the full ten-year period established under this article.

E. When the construction or improvement has been completed, the property owner shall notify the Authority, on behalf of each appropriate local taxing authority, and the Office in writing within 30 days after completion. The Authority will forward a copy of such notice to each appropriate local taxing authority and the Office within five business days of receipt or as otherwise mutually agreed. Failure to submit notice of completion within such thirty-day period may permit the County to deny such request for exemption for the initial tax year after completion of construction or improvement, thereby limiting the length of the schedule of taxes exempted to less than the full ten-year period established under this article. The notice of completion shall include the following information:

(1) Name and address of the property owner.

(2) Lot and block number of the property for which the exemption for qualified conversion to

commercial residential use or new construction for commercial residential use is sought.

(3) The date that the construction or the improvement was completed.

(4) Any modification to the plan of construction or improvement as previously submitted.

(5) The final, adjusted actual costs of construction or improvement.

F. The Office shall, after notice in writing and with a prior physical inspection, assess the property to determine the valuation attributable to the construction or improvement eligible for tax exemption under this article.

G. The Office shall provide to the Authority, each appropriate local taxing authority and the property owner with the following information in writing:

(1) The assessed valuation of the property prior to construction or improvement.

(2) The increase in assessed valuation attributed to the construction or improvement.

(3) The amount of assessed valuation increase eligible for tax exemption. The Treasurer shall then exonerate that amount of the assessed valuation increase and refund the amount of taxes attributable to the exemption in accordance with the exemption schedule. The Treasurer, however, shall not exonerate taxes if there exists any tax delinquency with respect to the property for which the exemption is sought or any property in the County owned by the property owner.

H. Appeals from the valuation and the amount eligible for exemption may be taken by the taxpayer or local taxing authorities as provided by Chapters 207 and 209 of the Allegheny County Administrative Code, the County's Assessment Standards and Practice Ordinance or applicable law or ordinance.

§ 475-27. Transferability.

The exemption from taxes authorized by this article shall be upon the property exempted and shall not terminate upon the sale, exchange or other alienation of such property unless otherwise provided.

§ 475-28. Intergovernmental cooperation agreement.

The proper officials of the County are hereby authorized to enter into an intergovernmental cooperation agreement, pursuant to the Intergovernmental Cooperation Act, 53 Pa.C.S.A. § 2301 et seq. with the City and the School District to implement the exemption from County real property taxation established under this article. The intergovernmental cooperation agreement shall be subject to review and approval as to form by the County Solicitor.

§ 475-29. Rules and regulations.

The County Manager and the Office are authorized to adopt rules and regulations, if necessary, to implement this article.

§ 475-30. Term.

Subject to the provisions of § 475-31, this article shall enter into effect immediately following its adoption. The provisions of this article shall apply to all applications filed from and after the effective date hereof and through the tenth anniversary of such effective date. The cost of improvements to be exempted and the schedule of taxes exempted existing at the time of the initial request for tax exemption shall be applicable to that exemption request, and subsequent amendment of this article, if any, shall not apply to requests initiated prior to its adoption.

§ 475-31. Contingent approval.

The terms of this article and the implementation of the temporary real property tax exemption granted hereunder are contingent upon the adoption of a similar amendment to LERTA Ordinance by the city and a similar amendment to LERTA Resolution by the school district.

ARTICLE V
(Reserved)[7]

§ 475-32. through § 475-39. (Reserved)

7. **Editor's Note: Former Art. V, Senior Citizen Relief, adopted 11-8-2000 by Ord. No. 33-00, was repealed 12-6-2022 by Ord. No. 37-22.**

ARTICLE VI
Property Tax Relief Program
[Adopted by the County Council 11-8-2000 by Ord. No. 33-00; amended 2-6-2001 by Ord. No. 14-01]

§ 475-40. Definitions. [Amended 12-6-2022 by Ord. No. 37-22]

As used in this article, the following words and phrases shall have the meanings set forth below:

ACT 77 — The Act of December 22, 1993, P.L. 529, No. 77, codified as the Allegheny Regional Asset District Law, 16 P.S. § 6101-B et seq.

ALLEGHENY REGIONAL ASSET DISTRICT LAW — See the definition of "Act 77" above.

BOARD OF PROPERTY ASSESSMENT — The Board of Property Assessment Appeals and Review of Allegheny County as set forth in Chapter 207 of the Administrative Code of Allegheny County.[8]

COUNTY — Allegheny County.

ELIGIBLE TAXPAYER — A longtime owner/occupant of a principal residence in the County who is:

A. A single person aged 60 or older during the calendar year in which County real property taxes are due and payable whose household income does not exceed the amount set forth in § 475-42D of this article; or

B. Married persons if either spouse is 60 or older during the calendar year in which County real property taxes are due and payable whose combined household income does not exceed the amount set forth in § 475-42D of this article; or

C. An unmarried widow or widower aged 50 or older during the calendar year in which County real property taxes are due and payable and whose household income does not exceed the amount set forth in § 475-42D of this article; or

D. A permanently disabled person aged 18 or older during the calendar year in which County real property taxes are due and payable and whose household income does not exceed the amount set forth in § 475-42D of this article; or

E. A trust created by a settlor identified in Subsections A through D above, provided that the aggregate household income of the trust and of such settlor establishing such trust, from all sources, does not exceed the amount set forth in § 475-42D of this article; or

F. A trust created by a third party for a disabled person identified in Subsection D above for whose benefit the trust was created, provided that the aggregate taxable household income of the trust and of the disabled person from all sources does not exceed the amount set forth in § 475-42D of this article.

HOUSEHOLD INCOME — All income received by an eligible taxpayer while residing in his or her principal residence during a calendar year.

INCOME — All income from whatever source derived, including, but not limited to, salaries, wages, dividends, interest, bonuses, commissions, income from self-employment, IRA distributions, alimony, support money, cash public assistance and relief, the gross amount of any pensions or annuities, including railroad retirement benefits for the calendar years prior to 1999, and 50% of railroad retirement benefits for calendar years 1999 and thereafter, all benefits received under the Federal Social Security Act (except

8. **Editor's Note: See Division 1, Administrative Code.**

Medicare benefits) for calendar years prior to 1999, and 50% of all benefits received under the Federal Social Security Act (except medical benefits) for calendar years 1999 and thereafter, all benefits received under State Unemployment Insurance laws and Veteran's Disability payments, all interest received from the Federal or any state government or any instrumentality or political subdivision thereof, realized capital gains, net income from rentals, worker's compensation and the gross amount of loss of time insurance benefits, life insurance benefits and proceeds, except the first $5,000 of the total of death benefit payments, and gifts of cash or property, other than transfers by gift between members of a household, in excess of a total value of $300, but shall not include surplus food or other relief in kind supplied by a governmental agency or property tax or rent rebate or inflation dividend.

LONGTIME OWNER/OCCUPANT — A property owner/occupant who, for at least 10 continuous years, has owned and occupied any dwelling place within the County as a principal residence and domicile, or any person who for at least 5 years has owned and occupied the same dwelling as a principal residence and domicile if that person received assistance in the acquisition of the property as a part of a government or nonprofit housing program.

OFFICE OF PROPERTY ASSESSMENT — The Office of Property Assessment of Allegheny County or such other entity performing the function of making valuations of real property for taxation purposes.

PERSON — A natural person.

PRIMARY PERSONAL RESIDENCE — The dwelling place and so much of the land or lots surrounding it as is reasonably necessary for use of the dwelling as a home, owned and occupied by a person. The term "primary personal residence" shall also include premises occupied by reason of ownership in a cooperative housing corporation, mobile homes which are assessed as realty for local property tax purposes and the land upon which the mobile home is situated, and other similar living accommodations, as well as part of a multidwelling or multipurpose building and a part of the land upon which it is built. It shall also include premises occupied by a person and located on land owned by a nonprofit incorporated association, of which the person is a member, if the person is required to pay a pro rata share of the property taxes levied against the association's land. It shall also include premises occupied by a person if he is required by law to pay a property tax by reason of his or her ownership or rental (including a possessory interest) in the dwelling, the land, or both. An owner includes a person in possession under a contract of sale, deed of trust, life estate, joint tenancy or tenancy in common or by reason of statutes of descent and distribution.

PROGRAM — See the definition of "special tax provisions" below.

SENIOR CITIZENS REBATE AND ASSISTANCE ACT — The Act of March 11, 1971, P.L. 104, No. 3, as amended, codified at 72 P.S. § 4751-1 et seq.

SPECIAL TAX PROVISIONS — A program of tax relief for eligible taxpayers authorized under Act 77, as amended, consisting of:

A. A discount on the payment of Allegheny County real property taxes; and

B. An installment payment program for the payment of Allegheny County real property taxes.

TREASURER — The Treasurer of Allegheny County.

§ 475-41. Special tax provision. [Amended 12-16-2003 by Ord. No. 61-03; 12-6-2022 by Ord. No. 37-22]

A. All eligible taxpayers in the County who are longtime owner/occupants of a principal residence shall be deemed a separate class of subjects of taxation and shall be entitled to the benefit of the special tax provisions of this article.

B. All eligible taxpayers in Allegheny County who are longtime owner/occupants shall be entitled to apply for and receive a discount of 30% on the gross or face amount of Allegheny County real property taxes then due and owing during a tax year on an eligible taxpayer(s) primary personal residence; provided, however, said 30% discount shall not exceed $650 in any single tax year, and further provided that said discount shall not be in derogation of the allowable 2% discount permitted to all taxpayers for early payment.

C. All eligible taxpayers in Allegheny County who are longtime owner/occupants shall be entitled to pay the gross or face amount of Allegheny County real property taxes due and owing during any tax year in two equal installment payments. The Treasurer shall establish the respective dates for all eligible taxpayers to make an installment payment of Allegheny County real property taxes.

§ 475-42. Participation in program. [Amended 12-6-2022 by Ord. No. 37-22]

Any person paying property taxes in the County may apply to the Office of the Treasurer for certification as a participant in the program authorized under this Article. In order to be eligible to participate in the program, the person must meet the following conditions:

A. The person must be a single person aged 60 or older; or be married persons with either spouse being 60 years of age or older; or be an unmarried widow or widower aged 50 years of age or older; or be a disabled person aged 18 years of age or older.

B. The person must be a longtime owner/occupant; and

C. The property owned by the person(s) must be the primary personal residence of the person(s).

D. The person's household income must not exceed $30,000, or other higher amount permitted under any amendment to Act 77 or other Pennsylvania statute and established by resolution of County Council.

§ 475-43. Rules and regulations.

The Office of the Treasurer and the Office of the Property Assessment shall jointly promulgate rules and regulations for the administration of the program established under this article. Such rules and regulations shall include, but not be limited to: application procedures and deadlines; reasonable proof of household income; proof of residence; ownership and occupancy of the primary personal residence; provision of the tax bill or receipt for the County real estate taxes owed or paid in connection with the primary personal residence; and any other reasonable requirements and conditions as may be necessary to operate the property tax relief program.

§ 475-44. Appeals.

An appeal from any determination hereunder by the Office of the Treasurer or the Office of Property Assessment shall be in accordance with the Pennsylvania Local Agency Law.[9]

§ 475-45. Budget review deadline.

By July 1, 2001, the budget will be reviewed with the express purpose of reopening the budget, if necessary, to adjust expenditures to address any loss of revenue that may result from the passage of Ord. No. 33-00, as amended.

---

9. Editor's Note: See 2 Pa.C.S.A. §§ 551 and 751 et seq.

ARTICLE VII
Homestead and Farmstead Exclusion Programs
[Adopted by the County Council 4-11-2002 by Ord. No. 12-02; amended in its entirety 6-4-2002 by Ord. No. 29-02]

§ 475-46. Word usage.

The definitions of the terms "homestead," "homestead property," "farmstead," and "farmstead property" contained in §§ 8401 and 8581 of Act 50 of 1998,[10] are incorporated by reference in their entirety herein. All other terms and provisions set forth in this article shall be construed in accordance with the provisions of Act 50 of 1998.

§ 475-47. Creation of Homestead Exclusion Program. [Amended 12-16-2003 by Ord. No. 61-03; 2-5-2013 by Ord. No. 7-13[11]]

There is hereby created and established an Act 50 of 1998, Homestead Exclusion,[12] for all applicable Allegheny County properties. The initial $18,000 of the assessed value of any homestead property in Allegheny County shall be excluded from Allegheny County real property taxation.

§ 475-48. Creation of Farmstead Exclusion Program. [Amended 12-16-2003 by Ord. No. 61-03; 2-5-2013 by Ord. No. 7-13[13]]

There is hereby created and established an Act 50 of 1998, Farmstead Exclusion,[14] for applicable Allegheny County properties. The initial $18,000 of the assessed value of any farmstead property in Allegheny County shall be excluded from Allegheny County real property taxation. The exclusion for farmstead property shall be in addition to any exclusion for homestead property for which the dwelling on the farm may qualify.

§ 475-49. Administration of program.

The Office of Property Assessments shall administer the County's Homestead and Farmstead Exclusion Programs created under this article. In administering the County's Homestead and Farmstead Exclusion Programs, the Office of Property Assessments shall follow all procedures and requirements set forth in Act 50, Subchapter F, §§ 8581 through 8587.[15]

§ 475-50. Reapplication requirement. [Added 11-1-2005 by Ord. No. 49-05]

A. Any change in the ownership of any parcel of real property to which the homestead exemption has previously been applied shall render the homestead exemption inapplicable to that property, effective beginning in the tax year following the change of the Property Assessment Office’s ownership record. The exemption shall continue to be deemed to be inapplicable to the property until a new application

---

10. Editor's Note: See 53 Pa.C.S.A. § 8401 and § 8581.

11. Editor’s Note: This ordinance provided the following: "For the 2013 tax year only, the deadline for payment of the discounted County real estate tax amount shall be April 30, 2013, and the deadline for payment of the face amount of County real estate taxes shall be May 31, 2013."

12. Editor's Note: See 53 Pa.C.S.A. §§ 8581 through 8587.

13. Editor’s Note: This ordinance provided the following: "For the 2013 tax year only, the deadline for payment of the discounted County real estate tax amount shall be April 30, 2013, and the deadline for payment of the face amount of County real estate taxes shall be May 31, 2013."

14. Editor's Note: See 53 Pa.C.S.A. §§ 8421 et seq.

15. Editor's Note: See 53 Pa.C.S.A. §§ 8581 through 8587.

is filed by the new property owner(s). The homestead exemption shall be reapplied to the property if evaluation of the new application indicates that the property meets the requirements of the Homestead Property Exclusion Program Act. The circumstances under which the reapplication requirement shall be imposed include, but are not limited to: conveyances of partial ownership interests in property to individuals who were previously listed among multiple owners of that property, any change to a listed owner's name, any change to a listed owner's taxing address, and removal of one or more individuals previously listed as an owner of the affected parcel.

B. Nothing in this section shall be deemed to alter the deadlines established for filing applications for the homestead exemption.

§ 475-50.1. Homestead status reevaluation schedule. [Added 9-26-2006 by Ord. No. 25-06]

A. For each property receiving the Act 50 homestead exemption, the Office of Property Assessment shall reexamine the conditions upon which the homestead status is accorded. Such reexamination may, at the discretion of the Chief Assessment Officer, include a physical inspection of the property at issue, a taxpayer's written verification of the continued applicability of the requirements of Act 50 to the homestead in question, or any other investigatory means deemed appropriate by the Chief Assessment Officer.

B. The reexamination required under § 475-50.1A shall be completed at the discretion of the Chief Assessment Officer, but in no case shall the reexamination take place less frequently than once every five years for each property to which the homestead exemption is applied.

C. At any point in time at which the Allegheny County Controller becomes aware or reasonably believes that the homestead exemption is being incorrectly or improperly applied to one or more parcels within Allegheny County, the Controller shall immediately identify the parcel(s) and the foundation(s) for the Controller's conclusions to the Chief Assessment Officer. Such notice shall be provided in writing, and once notified, the Chief Assessment Officer may reexamine the parcel(s) identified in accordance with the provisions of this section. **[Added 3-4-2008 by Ord. No. 10-08[16]]**

D. In the event that a property is found to be ineligible for the homestead exemption, in addition to any payments or penalties prescribed under the terms of the Homestead Property Exclusion Program Act, such exemption shall not be applied to that property in the current or future tax years. Taxpayers whose properties have been found to be ineligible for the exemption shall be afforded the opportunity to reapply for the exemption at any time, subject to the normal filing deadlines for each tax year. **[Amended 3-4-2008 by Ord. No. 10-08]**

E. Nothing in this section shall be construed to create any private right of action for enforcement of its provisions or to authorize any person to file suit to recover damages or seek equitable relief for any violation of the terms of this section.

---

16. Editor's Note: This ordinance also redesignated former Subsections C and D as Subsections D and E, respectively.

ARTICLE VIII
Reassessment
[Adopted by the County Council 5-7-2002 by Ord. No. 23-02]

§ 475-51. Certification of new valuations.

The next reassessment of all properties in Allegheny County shall be done and released to the public for the purpose of appeal by July, 2005, appeals shall be heard and settled in 2005, and valuations, as adjusted, shall be certified and used for the purpose of taxation in 2006.

§ 475-52. Property card information. [Added 5-7-2002 by Ord. No. 24-02]

Property card information which contains detailed information on all assessed properties, shall be included with all assessments mailed to property owners beginning in 2003.

ARTICLE IX
Tax Certification Fees
[Adopted 6-4-2002 by Ord. No. 31-02]

§ 475-53. Fee; exception; allocation.

A. Effective immediately, the fee for a real estate tax certification(s) shall be increased from $10 each to $25 each. The document will continue to be offered to eligible senior citizen taxpayers at no charge.

B. The fee collected for each real estate tax certification sold shall hereby be distributed for deposit in the following manner:

(1) Fifteen dollars will continue to be deposited into the General Fund of Allegheny County.

(2) Ten dollars will be deposited into a special fund established and designated under the discretion and administration of the Allegheny County Treasurer or his/her designee.

ARTICLE X
Real Property Tax Millage

[The Real Property Tax Millage is adopted annually by ordinance. Current millage amounts are on file in the County offices.]

ARTICLE XI
Residential Visitability Design Tax Credit Program
[Adopted 11-21-2006 by Ord. No. 39-06]

§ 475-54. Definitions.

The following words and phrases when used in this article shall have the meanings given to them in this section unless the context clearly indicates otherwise:

ACCEPTABLE SLOPE — A variable grade measured by rise over distance.

CIRCULATION PATH — An exterior or interior way of passage from one place to another for pedestrians.

DWELLING — A structure used as a place of habitation by a natural person. The term shall include new residential construction, existing residential construction, or any commercial or industrial building that is converted for residential use.

ELIGIBILE PROPERTY OWNER — A person responsible for the payment of taxes on a dwelling.

NO-STEP ENTRY — An entry into a dwelling that has no steps or other barrier to individuals who have significant mobility impairment, and having a threshold no greater than three-fourths of an inch.

PEDESTRIAN SITE ARRIVAL POINT — A place where pedestrians may enter a dwelling from a public right-of-way. The term includes, but is not limited to, sidewalks, driveways, streets, alleys, and paths.

POWDER ROOM — A toileting room having, at a minimum, a water closet and lavatory.

SIGNIFICANT MOBILITY IMPAIRMENT — The disability of an individual who needs assistive mobility technology in the form of a wheelchair, walker, crutches or a similar device in order to move along a circulation path.

VISITABLE LEVEL — The floor or level of a dwelling to which a no-step entry leads.

VISITABILITY DESIGN — The presence of architectural design features which enhance access and usability for visitors and residents who have significant mobility impairment and which minimize the cost of full accessibility modifications, if necessary, at a later time.

§ 475-55. Tax credit authorized; applicability.

In accordance with the terms of this article, a residential visitability design tax credit against real property taxes levied by Allegheny County on dwellings shall be granted to eligible property owners. The tax credit authorized under the terms of this article shall be limited to any new or renovated dwelling that contains visitability design features which will enhance the usability of the dwelling for individuals with significant mobility impairment and which minimize the cost of accessibility modifications, if necessary, at a later time.

§ 475-56. Term and amount of tax credit.

All tax credits granted under the terms of this article shall be for a duration of five years. The total amount of any tax credit granted under the terms of this article shall be the lesser of:

A. Two thousand five hundred dollars; or

B. The total amount of all increases in property taxes levied by Allegheny County as a result of the construction or renovation that is eligible for the residential visitability design tax credit.

§ 475-57. Administration of tax credit program.

The Office of Property Assessments shall administer the County's residential visitability design tax credit program created under this article. In doing so, the Office of Property Assessments shall follow all procedures and requirements of both this article and Act 132. The Office of Property Assessments is hereby authorized to require such information and conduct such other examinations as it shall deem necessary to ensure the eligibility of dwellings for participation in the residential visitability design tax credit program.

§ 475-58. Application for participation in program.

A. Application for the residential visitability design tax credit program shall be filed by an eligible property owner with the Office of Property Assessments no later than 90 days from the latter of:

(1) The date upon which the building permit was issued for the construction or renovation for which the credit is requested; or

(2) The date upon which the occupancy permit or certificate of completion was issued for the dwelling for which the credit is requested.

B. At a minimum, the application for the credit authorized under the terms of this article shall include:

(1) The name of the eligible property owner(s);

(2) The address of the eligible property owner(s);

(3) The location of the property which is the subject of the application;

(4) A statement of whether the property is newly constructed or newly renovated;

(5) The date of the new construction or new renovation that is the subject of the application;

(6) The name and address of the individual(s) or firm(s) that performed the new construction or new renovation, to the extent that they are known by the applicant; and

(7) Any other information deemed necessary to evaluating the dwelling's eligibility for the residential visitability design tax credit by the Office of Property Assessments.

C. The Office of Property Assessments shall issue a written decision on each application that it receives no later than 90 days after the date upon which an application was filed, and shall mail a copy of this decision to the eligible property owner(s) at the address provided in the application. In the event that an application is denied, the written decision of the Office of Property Assessments shall include a statement of all reason(s) for the denial. In the event that a written decision is not issued by the Office of Property Assessments within the time required by this section, such application shall be deemed to be granted.

D. In the event that the Office of Property Assessments denies an application filed under the terms of this article, the applicant(s) shall have the right to appeal this decision to the Board of Property Assessment Appeals and Review within 30 days of the applicant's receipt of the denial. Any appeals of Board decisions pursuant to the requirements of this article to the Court of Common Pleas shall be made in accordance with applicable law governing such appeals.

§ 475-59. Design standards.

In order to be eligible for the County's residential visitability design tax credit, the architectural design of a new or newly renovated dwelling shall comply with all of the following requirements:

A. The path from either a vehicle parking area or a pedestrian site arrival point to the dwelling's no-step entrance shall be firm, stable and slip-resistant.

(1) The grade of the path shall not exceed the following acceptable slopes:

(a) For slope lengths of five feet or less: 1:8, with a maximum rise of 7.5 inches;

(b) For slope lengths of between five and 12 feet: 1:10, with a maximum rise of 14.4 inches; and

(c) For all slope lengths of more than 12 feet: 1:12.

(2) Notwithstanding the provisions of § 475-59A(1), if the average slope of the property line along and contiguous to the public right-of-way exceeds 1:12, the slope of the exterior circulation path may be greater, if necessary, to provide access to the no-step entry, but the slope of such exterior circulation path may not exceed the average slope of the property line.

B. The dwelling shall provide at least one no-step entrance approachable by a firm, stable and slip-resistant path with an acceptable slope, as provided for in § 475-59A. The no-step entrance to the dwelling may be located on any exterior wall, or may be an entrance to the visitable level of the dwelling through an integral garage.

C. All doors located at no-step entrances must have a clear open width of at least 32 inches, and must be equipped with lever opening hardware.

D. Interior circulation paths on the visitable level of the dwelling must be at least 36 inches in width throughout their length.

E. All interior doorways on the visitable level of the dwelling, excluding closets and doorways to levels below the visitable level, shall have a minimum clear open width of 32 inches.

F. Each dwelling shall, at a minimum, have at least one powder room or full bathroom on the visitable level. The powder room or bathroom shall, at a minimum, have a thirty-inch by forty-eight-inch clear floor space contiguous to the water closet and the lavatory. Any clear space under the lavatory may be included in these measurements, and clear spaces to the water closet and lavatory may overlap. Plumbing fixtures and entry doors accessing the visitable powder room or bathroom shall be equipped with lever-style hardware.

(1) All powder rooms and full bathrooms throughout the dwelling shall have reinforcement of at least two inches by eight inches of blocking between the studs placed inside the walls in order to facilitate the installation of grab bars, if needed. Reinforcement shall be capable of supporting grab bars that resist shear and bending forces of at least 250 pounds. Blocking should be centered at 34 inches from and parallel to the finished floor.

(2) In renovated homes, only the walls in powder rooms and full bathrooms on the visitable floor(s) and those on floors that have the stud walls exposed as part of the renovation process must be in compliance with the requirements of § 475-59F(1).

G. Light switches may not be higher than 48 inches above the finished floor on any level of the dwelling, subject to the following exceptions:

(1) For lights that are controlled by multiple switches on the same floor of the dwelling, only one

switch on that level must comply with the requirements of this section.

(2) In renovated homes, only the switches on the visitable floor(s) and any floor(s) upon which electrical renovations were done need comply with the requirements of this section.

ARTICLE XII
Sheriff's Sales
[Adopted 5-18-2011 by Ord. No. 8-11]

§ 475-60. Recording of deeds and notification of Sheriff's sales to taxing bodies.

A. For any real property offered at Sheriff's sale due to nonpayment of real estate taxes and purchased by a third party through such sale, the Sheriff shall be responsible for filing the deed and, within seven days of filing of the Sheriff's deed, provide written notice of the conveyance to the Allegheny County Office of Property Assessments. The written notice required pursuant to this subsection shall include the date of sale, identification of the property sold by both address and lot and block number, and the name and address of the individual(s) or other entity that purchased the property.

B. At the time of the sale, the Sheriff shall collect all requisite filing costs and fees necessary to properly record the deed.

C. Within seven days of receipt of written notice from the Sheriff, the Allegheny County Office of Property Assessments shall forward copies of such notice to all taxing bodies levying real estate taxes on the property described, including but not limited to the municipality and school district where the property is located.

§ 475-61. through § 475-69. (Reserved)

ARTICLE XIII
Volunteer Services Tax Credit Program
[Adopted 2-20-2024 by Ord. No. 03-24]

§ 475-70. Definitions.

The following words and phrases when used in this chapter shall have the meanings given to them in this section unless the context clearly indicates otherwise:

ACTIVE VOLUNTEER — A volunteer for a volunteer fire company or nonprofit emergency medical service agency listed under § 475-71C who has complied with, and is certified under, the Volunteer Service Credit Program.

DEPARTMENT — The Allegheny County Department of Emergency Services.

EARNED INCOME TAX — A tax on earned income and net profits levied under Chapter 3 of the act of December 31, 1965 (P.L. 1257, No. 511), known as the "Local Tax Enabling Act[17]."

ELIGIBILITY PERIOD — The timeframe when volunteers may earn credit under the Volunteer Service Credit Program.

EMERGENCY RESPONDER — A volunteer who responds to an emergency call with one of the entities listed under § 475-71C.

EMERGENCY RESPONSE CALL — Any emergency call to which a volunteer responds, including travel directly from and to a volunteer's home, place of business or other place where he/she shall have been when the call was received.

OFFICE OR OFFICE OF PROPERTY ASSESSMENTS — The Allegheny County Office of Property Assessments.

QUALIFIED REAL PROPERTY — A residential real property located within the boundaries of Allegheny County that is occupied as the domicile of and that is in whole or in part owned by an active volunteer.

TREASURER — The Treasurer.

VOLUNTEER — A member of a volunteer fire company or a nonprofit emergency medical service agency.

§ 475-71. Establishment of real property tax credit.

A. There is hereby created a tax credit against real property tax due and payable to Allegheny County. The goal of this program is to encourage membership and service in the County's volunteer fire companies and nonprofit emergency medical service agencies.

B. The Department shall establish the annual criteria that must be met to qualify for credits under the real property tax credit program based on the following:

(1) The number of emergency response calls to which a volunteer responds.

(2) The level of training and participation in formal training and drills for a volunteer.

(3) The total amount of time expended by a volunteer on administrative and other support services,

17. Editor's Note: See 53 P.S. § 6924.101 et seq.

including but not limited to:

(a) Fundraising.

(b) Providing facility or equipment maintenance.

(c) Financial bookkeeping.

(4) The involvement in other events or projects that aid the financial viability, emergency response or operational readiness of a volunteer fire company or a nonprofit emergency medical service agency.

(5) The total number of years the volunteer has served.

C. The Volunteer Service Credit Program is available to residents of Allegheny County who both:

(1) In whole or in part own qualified real property located within Allegheny County; and

(2) Are members of any volunteer fire company or nonprofit emergency medical service agency that provides services within Allegheny County.

D. A volunteer must meet the minimum criteria, set under the terms of this section, during the eligibility period to qualify for the tax credits established under the terms of this article. For 2024 and each subsequent year thereafter, the eligibility period shall run from January 1 until October 31.

E. The chief of each volunteer fire company or the supervisor of the nonprofit emergency medical service agency providing services within Allegheny County shall keep specific records of each volunteer's activities in a service log to establish credits under the volunteer service credit program. Service logs shall be subject to review by the Allegheny County Controller, the Treasurer, the State Fire Commissioner and the State Auditor General. The chief, or supervisor, shall annually transmit to the County a notarized eligibility list of all volunteers that have met the minimum criteria for the Volunteer Service Credit Program. The notarized eligibility list shall be transmitted to the Office of Property Assessments and Treasurer no later than November 30 of each year. The chief or supervisor shall post the notarized eligibility list in an accessible area of the volunteer agency's facilities.

F. Volunteers that have met the minimum criteria of the volunteer service credit program in a given tax year shall sign and submit an application for certification for the following tax year to their chief or supervisor. The chief or supervisor shall sign the application if the volunteer has met the minimum criteria of the volunteer service credit program and forward it to the Treasurer and Office of Property Assessments. Applications shall not be accepted by the County before January 1 or after March 31 of any tax year.

G. The Treasurer shall review the applications for credit under the Volunteer Service Credit Program and shall cross reference them with the notarized eligibility list. No later than June 1 of each tax year, the Treasurer shall approve all applicants that are on the notarized eligibility list and issue a tax credit certificate to all approved applicants.

H. The Treasurer shall keep an official Tax Credit Register of all active volunteers that were issued tax credit certificates. The Treasurer shall issue updates, as needed, of the official Tax Credit Register to the following:

(1) The Office of Property Assessments;

(2) Chief of the volunteer fire company(ies);

(3) Chief or supervisor of the nonprofit emergency medical services agency(ies);

I. An emergency responder that is injured during an emergency response call may be eligible for future tax credits. The injury must have occurred while responding to, participating in, or returning from an emergency response call with one of the entities delineated in § 471-71C. An injured emergency responder shall provide documentation from a licensed physician with the application required under the terms of § 471.71F, stating that their injury prevents them from performing duties to qualify as an active volunteer. In such a case, the injured emergency responder shall be deemed an active volunteer for that tax year. An injured emergency responder shall annually submit the application required under the terms of § 475-71F, along with updated documentation from a licensed physician stating that the injury still exists and prevents them from qualifying as an active volunteer. The injured emergency responder shall again be deemed an active volunteer for that tax year. An injured emergency responder shall only be deemed an active volunteer for a maximum of five consecutive tax years.

§ 475-72. Real property tax credit.

A. Each active volunteer who has been certified under the terms of this article shall be eligible to receive a real property tax credit of 100% of the tax liability for the tax year in which an application for certification is submitted on qualified real property owned in whole or in part by such certified active volunteer; provided, however, that the total amount of the tax credit received by any certified active volunteer shall not exceed $500 in any tax year. If the tax is paid in the penalty period for any given tax year, the tax credit shall only apply to the base tax year liability.

B. An active volunteer with a tax credit certificate may file a claim for the tax credit on their qualified real property tax liability for the County's real estate tax levy. The tax credit shall be administered as a refund by the Treasurer. In order to receive a tax credit, an active volunteer shall file the following with the Treasurer no later than August 31 of each tax year:

(1) A true and correct receipt from the County real estate tax collector of the paid County real property taxes for the tax year which the claim is being filed.

(2) The tax credit certificate.

(3) Photo identification.

(4) Documentation that the tax paid was for qualified real property as defined in this article.

C. Upon submission of all documents required under this subsection, the Treasurer shall issue the tax refund to the active volunteer no later than December 1 of each tax year.

D. The Treasurer shall reject the claim for a County real property tax credit if the taxpayer fails to provide the documents required under the terms of Subsection B. If the Treasurer rejects a claim, the taxpayer shall be notified, in writing, of the decision. The notice shall include the reasons for the rejection and provide the method of appealing the decision pursuant to the terms of this article. Taxpayers shall have 30 days to appeal the decision of the Treasurer.

§ 475-73. Appeals.

Any taxpayer aggrieved by a decision rendered pursuant to the terms of § 475-72D shall have a right to appeal said decision. All appeals under the terms of this section shall follow the provisions of 2 Pa.C.S. Chapter 5, Subchapter B (relating to practice and procedure of local agencies), and 2 Pa.C.S. Chapter 7, Subchapter B (relating to judicial review of local agency action), also known as the "Local Agency Law."

§ 475-74. Tax credit term.

The tax credit established under the terms of this article shall remain in effect until such time as this article is repealed or amended.

§ 475-75. Penalties for false reporting.

Any person who knowingly makes or conspires to make a false report relating to eligibility for participation under the terms of this article shall be punishable as provided for at 35 Pa.C.S.A. § 79A31 or successor statute.